

**THIS IS A PROFORMA OF AN AGREEMENT FOR SALE WHICH SHALL BE
MODIFIED AS PER THE UNDERSTANDING ARRIVED AMONGST THE
PARTIES.**

**TYPOGRAPHICAL ERRORS/ CLAUSE REFERENCING ERRORS/SPELLING
ERRORS/LANGUAGE MODIFICATIONS/MINOR CHANGES, IF ANY SHALL BE
MODIFIED AT THE TIME
OF EXECUTION OF THE DRAFT WITH A POTENTIAL ALLOTTEE.**

AGREEMENT FOR SALE

This Agreement for Sale (“**Agreement**”) is made and executed at Bengaluru on this ____ day of ____, year Two Thousand and Twenty Six (____/____/2026).

By and between:

GODREJ PROPERTIES LIMITED, (CIN: L74120MH1985PLC035308) (PAN: AAACG3995M), a company duly incorporated under the provisions of the Companies Act, 1956 and deemed to be incorporated under the provisions of the Companies Act, 2013; having its registered office at Godrej One, 5th Floor, Pirojshanagar, Eastern Express Highway, Vikhroli (EAST), Mumbai – 400079 and its regional office at 9th floor, Godrej Centre, 3rd Cross Road, Krishnamurthi Nagar, Maruthi Sevanagar, Bengaluru – 560 038, represented by its Authorized Signatory, **Mr. Darshan Kannan** duly authorized vide board resolution dated ____, hereinafter referred to as “**Promoter**” which expression shall unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and assigns) of the **One Part;**

AND

[In case of Individual/s]

MR/MRS/MS. _____, (Aadhar: _____), (PAN _____), aged ____ years, residing at _____, hereinafter referred to as the “**Allottee/s**” (which expression shall unless repugnant to the subject, context or meaning thereof, shall always mean and include, his/her/their legal heirs, executors, and administrators) of the **Other Part;**

OR

[In case of a Company]

_____, (CIN No.: _____), (PAN No. _____), a private limited company incorporated under the Companies Act, 2013, having its registered office at _____, represented by its Authorized Signatory, Sri. _____ [●] duly authorized vide Board Resolution dated _____, hereinafter referred to as the “**Allottee/s**” (which expression shall unless repugnant to the subject, context or meaning thereof, shall always mean and include its successors and permitted assigns) of the **Other Part**;

OR

[In case of a partnership firm]

M/s. _____, (Firm No.: _____), (PAN No. _____), a Partnership Firm registered under the Indian Partnership Act, 1932 having its principal place of business at _____, represented by its Authorized Partner Mr. _____, (PAN: _____), duly authorized vide Authorization Letter dated _____, hereinafter referred to as the “**Allottee/s**” (which expression shall unless repugnant to the subject, context or meaning thereof, shall always mean and include its partners and all the partners from time to time and the heirs, executors and administrator of the last surviving partner) of the **Other Part**;

OR

[In case of HUF]

_____ (HUF)(PAN: _____), acting through Karta of HUF Mr. _____, hereinafter referred to as the “**Allottee/s**”, (which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include the members of the HUF from time to time and the last surviving member of the HUF and the heirs, executors, administrators and permitted assigns of such last surviving member of the coparcenary and survivor/s of them and the heirs, executors and administrators of the last survivor/s of them), of the **Other Part**;

OR

[In case of an LLP]

_____ LLP (LLPIN: _____) (PAN: _____), a limited liability partnership incorporated under the Limited Liability Partnership Act, 2008, having its registered office at _____, through its authorized representative Mr./Ms. _____ authorized vide Partner’s Resolution dated _____ hereinafter referred to as “**Allottee/s**” (which expression shall unless it be repugnant to the context or meaning thereof be deemed to mean and include its successors in interest and permitted assigns) of the **Other Part**

The Promoter and the Allottee/s are hereinafter collectively referred to as “**Parties**” and individually as “**Party**”.

DEFINITIONS:

For the purpose of this Agreement for Sale, unless the context otherwise requires, -

- a) **“Act”** means the Real Estate (Regulation and Development) Act, 2016 (16 of 2016);
- b) **“Apartment”** shall mean an apartment as per section 2(e) of the Act, as more particularly described in the **Schedule D** hereunder and may also be termed/referred as apartment(s) / flat(s) / premises / unit(s), wherever the context appears in this Agreement.
- c) **“Appropriate Government”** means the Government of Karnataka;
- d) **“Car Park(s)”** shall mean the car parking space/s (if any) allotted to the Allottee/s under this Agreement.
- e) **“Carpet Area”** shall mean the net usable floor area of an Apartment, excluding the area covered by the external walls, areas under services shafts, exclusive balcony appurtenant to the said Apartment for exclusive use of the Allottee/s or verandah area and exclusive open terrace area appurtenant to the said Apartment for exclusive use of the Allottee/s, but includes the area covered by the internal partition walls of the Apartment.
- f) **“Cess”** shall mean and include any applicable cess, existing or future on the supply of goods or services or both under GST Law.
- g) **“Club House/Recreational Building”** shall mean the building to be constructed for the usage and benefit the Allottee/s in the Common Area.
- h) **“Common Areas”** As defined in sub-clause (n) of Clause 2 of The Real Estate (Regulation and Development) Act, 2016, which are particularly mentioned under Annexure E- Part 1 as “Club House Amenities” and Part II as “landscape Outdoor Amenities” collectively the “Amenities”.
- i) **“Earnest Money”** shall mean 10% of the Sale Consideration being an aggregate amount of 5% of sale consideration paid at the time of booking and 5% within 15 days from the date of booking as more particularly set out in Annexure C (Payment Schedule)
- j) **“Estimated Other Charges”** shall have the meaning as ascribed to it under clause 7.1 of this Agreement.
- k) **“Exclusive Areas”** shall mean the area of balcony and utility appurtenant to the said Apartment for exclusive use of the Allottee/s or verandah area and exclusive open terrace area appurtenant to the said Apartment for exclusive use of the Allottee/s and other areas appurtenant to the said Apartment for exclusive use of the Allottee/s.
- l) **“GST”** means and includes any tax imposed on the supply of goods or services or both under GST Law.
- m) **“GST Law”** shall mean and include the Integrated Goods & Service Tax Act, GST (Compensation to the States for Loss of Revenue) Act, Central Goods & Services Tax

Act and State Goods & Services Tax Act / UTGST, and all related ancillary legislations, rules, notifications, circulars, statutory orders etc.

- n) **“Non-Refundable Amounts”** shall collectively mean and include all of the: (a) Earnest Money or a part thereof paid till such date (b) Interest on any overdue payments (c) brokerage paid to channel partners/brokers, if any, (d) administrative charges as per Promoter’s policy (e) all taxes paid by the Promoter to the Authorities (f) amount of stamp duty and registration charges to be paid on deed of cancellation of this Agreement, if Agreement for Sale is registered (g) any other taxes which are currently applicable or may be applicable in future and (h) subvention cost (if the Allottee/s has opted for subvention plan) which the Promoter may incur either by way of adjustment made by the bank in installments or paid directly by the Promoter to the bank.
- o) **“Relevant Laws”** means and includes any applicable Central, State or local law(s), statute(s), ordinance(s), rule(s), regulation(s), notification(s), order(s), bye-laws, etc. including amendment(s)/modifications thereto, any government notifications, circulars, office order, directives, etc. or any government notifications, circulars, directives, order, direction, judgment, decree or order of a judicial or a quasi-judicial authority, etc. whether in effect on the date of this Agreement, including the Real Estate (Regulation and Development) Act, 2016 and Karnataka Real Estate (Regulation and Development) Rules, 2017.
- p) **“Rules”** means the Karnataka Real Estate (Regulation and Development) Rules, 2017 made under the Real Estate (Regulation and Development) Act, 2016;
- q) **“Undivided share”** means the corresponding undivided share in land for the Apartment/Unit in Project Land.

WHEREAS:

- A.** The Promoter is the sole and absolute owner of all that piece and parcel of converted land comprised in Survey No. 27/8 measuring 17.8 Guntas, Survey No. 29/3 measuring 25 Guntas, Survey No. 28/1 measuring 1 Acres 38 Guntas, Survey No. 27/1 measuring 2 Acres 13.8 Guntas, Survey No. 27/3 measuring 1 Acre 14.8 Guntas, Survey No. 27/5 measuring 1 Acre 14.8 Guntas, Survey No. 27/2 measuring 0.08 (half gunta) totally admeasuring 8 Acres 3.5 Guntas, situated at Kada Agarahara Village, Sarjapura Hobli, Anekal Taluk, Bengaluru Urban District, Karnataka, admeasuring in aggregate 32677.91 square meters equivalent to and more particularly described in the **Schedule A** written hereunder (**“Larger Property”/“Schedule A Property”**)
- B.** The Promoter has acquired the Larger Property by virtue of Sale Deed dated 10.10.2025 registered as Document No.SRJ-1-05740-2025-26, in the office of the Sub Registrar Basavanagudi (Sarjapura), Bangalore.

- C. Prior to commencement of proposed development on the Larger Property, the Promoter has relinquished the area in Survey No. 27/2 measuring 0.08 (half gunta), situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bengaluru Urban District, Karnataka (“**Relinquished Area**”) in favour of Yamare Gram Panchayat an area admeasuring **16.06 square meters** (equivalent to **172.86 square feet**) towards Road vide a registered Relinquishment Deed dated 30.04.2026, bearing document no. ABL-1-01101-2026-27 registered in the office of the Sub Registrar, Attibele and reserved an area admeasuring **36.08 square meters** (equivalent to **388.36 square feet**) towards parks and open spaces. The Larger Property, excluding Survey No. 27/2, admeasuring 8 Acres 3 Guntas is more particularly described in Schedule B written hereunder (“**Schedule B Property**”).
- D. The Promoter has obtained the Development Plan bearing No. **APY/LAO/191/25-26** dated **08.05.2026** from the Anekal Planning Authority (“**Development Plan**”) for the development of the Schedule B Property as a residential apartment project.
- E. As per Relevant Laws and in terms of the Development Plan, the Promoter is required to allocate, earmark and/or relinquish the following portions towards the corresponding reservations/setbacks/demarcation as detailed below:
- a. an area admeasuring **3761.23 square meters** (equivalent to **40485.50 square feet**) is relinquished in favour of the Anekal Planning Authority towards parks and open spaces vide a registered Relinquishment Deed dated 30.04.2026, bearing document no. ABL-1-01099-2026-27 registered in the office of the Sub Registrar, Attibele;
 - b. an area admeasuring **11307.55 square meters** (equivalent to **121713.33 square feet**) is relinquished in favour of the Anekal Planning Authority towards road vide a registered Relinquishment Deed dated 30.04.2026, bearing document no. ABL-1-01100-2026-27 registered in the office of the Sub Registrar, Attibele;
 - c. an area admeasuring **1638 square meters** (equivalent to **17631.26 square feet**) has been earmarked/reserved for the purpose of civic amenities; and
 - d. an area admeasuring **13066.70 square meters** (equivalent to **140648.65 square feet**) has been reserved for the purpose of driveway and open area.

Areas as provided under Clause E (a) to (c) hereinabove shall hereinafter be collectively referred to as “**Reservations**”. The said Reservations are more particularly delineated on the plan of the Larger Property annexed hereto as **Annexure A**.

- F. On the balance land admeasuring **15971.13 square meters** (equivalent to **171,911.64 square feet**) forming part of the Schedule B Property excluding the Reservations which is more particularly described in **Schedule C** written hereunder and is more particularly delineated in the plan annexed hereto as **Annexure A (“Schedule C Property”/ “Project Land”)**, the Promoter is developing a residential project under the name and style of “**Godrej Regent Park**” (“**Project**”).
- G. The Schedule C Property is assigned with amalgamated BBMP Khatha bearing EPID No. 150200100100922059 issued by the office of the BBMP Revenue Department.
- H. The Promoter has relinquished an extent of 11,307.55 square meters from the Schedule B Property for road purposes as mentioned in clause D(b) above, including for the widening of the existing access road to the Project and provision of a public access road to the lands adjoining the Project Land. The Project is presently accessible through a 12.20 meter wide road, which is proposed to be widened to 18 meters in accordance with the Development Plan, as more particularly depicted in the plan annexed hereto as Annexure A (“**Main Access Road**”). Further, a 12.19 meter wide public road, as more particularly shown in Annexure A (“**Internal Public Road**”), shall be provided to ensure perpetual and unrestricted access to general public, Promoter, its affiliates, directors, officers, employees, agents, representatives, transferees, licensees, contractors, vendors, visitors, tenants, nominees, assigns, successors in interest and adjoining land owners for the purpose of ingress and egress for all kind of traffic including pedestrian on a 24 hours basis in perpetuity and in this regard the Purchaser shall not have any objection to the same, and acknowledge and agree that the Internal Public Road shall remain available for common use by the Promoter and the adjoining landowners in perpetuity.
- I. The Promoter has also obtained sanctioned building plan and building license dated 09.07.2026 bearing Reference No. **AYP/CC/193/2026-27** from the Anekal Palling Authority (hereinafter referred to as the “**Building Plan**”). In terms of the Building Plan, the Project shall comprise of Two (2) Towers (hereinafter collectively referred to as the “**Buildings**”). The Project shall, in aggregate, consist of **534 (Five Hundred and Thirty Four)** residential apartment units. **Buildings** shall have Three (03) common basement levels and shall comprise of a Ground Floor and Thirty Five (35) upper floors, all in accordance with the sanctioned plans approved by the competent authority. The Project shall also include a Recreational Building/Club House forming part of the common amenities to be developed for the benefit of the Project, and the facilities and amenities proposed to be provided therein are more particularly described in **Annexure E** hereto (the “**Amenities**”).

- J.** The Promoter has registered the Project under the provisions of the Real Estate (Regulation and Development) Act, 2016, with the Karnataka Real Estate Regulatory Authority, Bangalore, bearing Registration No. _____, under the name of “**GODREJ REGENT PARK**”.
- K.** The Promoter has acquired certain lands adjacent to the Larger Property and is in the process of acquiring additional adjoining lands (collectively referred to as the “**Additional Lands**”). Subject to Relevant Laws and obtaining requisite approvals, permissions, and consents from the competent authorities, the Promoter may, at its sole discretion, develop the whole or any portion of the Additional Lands, either independently or as part of subsequent phase(s) of the Project, together with the Larger Property. The Allottee/s acknowledge and agree that the Promoter shall be entitled to integrate the development on the Additional Lands with the Project developed / to be developed on the Larger Property, including integration of common infrastructure, amenities, and facilities such as club house, fire driveways, services, podiums, parking areas, basements, landscaped areas, access roads, pathways, utility infrastructure, and such other common facilities and constructions as may be necessary for integrated development. The Promoter shall further be entitled to revise, amend, modify, or obtain modifications to the sanctioned development plan, layout plan, building plan, and/or any other approvals, sanctions, or permissions in relation to the Project and/or the Additional Lands, including changes to the layout, configuration, phasing, access, common areas, amenities, and infrastructure, in accordance with Relevant Law and the Allottee/s expressly acknowledge being aware of and consent to such future development, integration, modifications, and phased construction. The Allottee/s further agree that the allottees, occupants, users, and owners of the subsequent phase(s) and/or developments constructed on the Additional Lands shall be entitled to jointly use and enjoy, in common with the Allottee/s of the Project, the entrance, access roads, pathways, infrastructure, fire driveways, club house, parking areas, basements, and all other common amenities and facilities forming part of the integrated development, provided that such Additional Lands are developed as part of the subsequent phase(s) of the Project.
- L.** The Promoter has appointed **DPA Consultants Private Limited** as the Architect for the Project, who is duly registered with the Council of Architecture, and the engagement of the said Architect is governed by an agreement in the form prescribed by the Council of Architecture;
- M.** The Promoter has appointed **Innotech Engineering Consult Pvt Ltd** as the Structural Engineers for preparation of the structural designs and drawings of the Buildings, and the Promoter shall be subject to and accept the professional supervision of the Architect and the Structural Engineers in relation to the Project until completion of the Buildings;

- N.** The Promoter has obtained a Certificate of Title in respect of the Larger Property, and the same has been duly uploaded on the Karnataka Real Estate Regulatory Authority portal in compliance with the applicable provisions of the RERA Act.
- O.** The Promoter has made available for inspection by the Allottee/s all documents of title relating to the Larger Property and the Project, together with the plans, designs and specifications prepared by the Promoter's Architect, and such other documents as are required to be disclosed under the provisions of the Act and the Rules made thereunder.
- P.** The Promoter has obtained the requisite approvals and sanctions from the concerned competent authorities in relation to the Project and the said Building(s), and shall obtain, from time to time, all further approvals, permissions and sanctions as may be required under applicable law, including the Occupancy Certificate and such other approvals as may be necessary for completion and occupation of the Project;
- Q.** The Allottee shall have access to the Club House, its amenities and landscape outdoor amenities in common with all the Allottee/s in the Project as particularly mentioned under Annexure E – Part I and Part II. The Allottee/s hereby confirm and undertake that neither the Allottee/s nor any society, common organization, association, and/or Apex Body formed for this Project shall at any time raise any objection/ dispute / hindrance for any reason whatsoever for use of such Club House amenities and landscape outdoor amenities. The Club House amenities and landscape outdoor amenities shall be used in accordance with Relevant Laws. The Allottee/s herein is fully aware of the scheme of development of the Project, the development and consent/s to the same and shall not raise any objection in future.
- R.** The Promoter may at its absolute discretion, amend/alter/modify and/or carry out further development in a phase-wise or segment-wise manner in consonance with approvals issued in accordance with the Relevant Laws, in the manner as the Promoter may deem fit. The Promoter reserves the right to add and/or delete one or more basement / floors to the Building, add new building/s having one or more tower within the Project and/or also change the location of any of the buildings, amenities, and facilities within the Project or change the nature of the building(s) proposed to be constructed on the Project Land as the Promoter deems fit as per approvals and Relevant Laws. The Allottee/s agrees and understands that the approved Building Plan, Development Plan and other approvals and conditions prescribed in relation to the same may be subjected to further revisions/ amendments/ modifications by the planning authority, due to any change required by the Promoter or as a result of changes to the Relevant Laws and/or revisions in approvals from time to time, under such circumstances, the Allottee shall give his/her/consent for such modification.

- S. The Allottee/s shall co-operate with the Promoter in all the future developments that the Promoter may undertake in addition to the Project in the Additional Lands, which may or may not be integrated with the Project. The Allottee shall not obstruct such future development in relation to the Additional Lands in any manner whatsoever and the Promoter shall have unaffected right to access/use of the Project Land free of cost for the purpose of such future development as per applicable law. In the event of the future development, the residents of such future development shall have unfettered right to the facilities and amenities including services such as sewage treatment plant DG set and such other services which may be located within the Project Land and Allottee/s shall not to object such residents of future development.
- T. In the event of any acquisition or requisition of any portion of the Larger Property for public purposes by any government / authorities as per Relevant Laws, the Promoter may handover / relinquish such affected areas to the respective government/ authorities and thereafter modify the Building Plan and appropriately reduce the total extent of the Project. However, the Promoter assures the Allottee/s that the area of the Apartment / Unit shall not be affected. Additionally, the Allottee/s by themselves or through the Association/ Apex Body, shall not be entitled to claim any compensation for such reduction of land area from the Larger Property and shall have no objections / reservation whatsoever regarding the same.
- U. Pursuant to the foregoing, the Allottee/s has/have applied to the Promoter with the intention of purchasing: **(i) an undivided share measuring _____ square meters (equivalent to _____ square feet) in the Project Land** (hereinafter referred to as the “**UDS**”); and **(ii) A _____ BHK apartment** bearing No. _____ on _____ floor of Building No. _____ in the Project known as “**GODREJ _____**”, admeasuring _____ **square meters** (equivalent to _____ square feet) of carpet area, _____ **square meters** (equivalent to _____ square feet) of exclusive area, and _____ **square meters** (equivalent to _____ square feet) of proportionate common area, together with _____ (**_____**) **covered car** parking space in the basement of the Building, in terms of (i) in the Project, more particularly described in **Schedule D** hereunder (hereinafter referred to as the “**Apartment**”).
- V. A copy of the plan of the Apartment agreed to be purchased by the Allottee/s is annexed hereto and marked as **Annexure B** (Floor Plan of the Apartment). The specifications agreed to be provided in respect of the Apartment are annexed hereto as **Annexure D**. The common Club House amenities and landscape open amenities appurtenant to the said Apartment are more particularly set out in **Annexure E – Part I** and **Annexure E – Part II**, respectively.

- W.** The Parties, relying upon the representations, warranties, confirmations and assurances of each other and with the intention of faithfully observing and performing the terms, conditions and covenants contained in this Agreement and in compliance with the applicable laws, are now desirous of entering into this Agreement on the terms and conditions appearing hereinafter;
- X.** Prior to the execution of these presents, the Allottee/s has/have paid to the Promoter a sum of ₹ _____/- (Rupees _____ Only), towards the sale consideration of the Apartment agreed to be sold by the Promoter to the Allottee/s, as advance payment / application fee (hereinafter referred to as the “**Application Money**”), the receipt whereof the Promoter doth hereby admit and acknowledge. The Allottee/s has/have agreed to pay the balance sale consideration to the Promoter in the manner and upon the terms set out in the **Sale Consideration and Payment Plan** annexed hereto as **Annexure C**.
- Y.** In compliance with the provisions of Section 13 of the Real Estate (Regulation and Development) Act, 2016, the Promoter is required to execute a written agreement for sale in respect of the said Apartment with the Allottee/s, being these presents, and to cause the same to be duly registered in accordance with the provisions of the Registration Act, 1908.
- Z.** In accordance with the terms and conditions set out in this Agreement and as mutually agreed upon by and between the Parties, the Promoter hereby agrees to sell, and the Allottee/s hereby agrees to purchase the Schedule C and D Properties;

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS: -

1. CONSTRUCTION:

- 1.1 The Promoter is developing Schedule A Property which consists of the Project Land in accordance with the approved plans, designs and specifications. The Promoter shall be entitled to carry out minor additions due to architectural and structural reasons duly recommended and verified by Architect or Engineer as per the provision of the applicable Act and as required under the relevant laws. Provided the Promoter shall obtain prior consent in writing from the Allottee/s in respect of any major alteration or addition or variations or modifications which may adversely affect the Apartment of the Allottee/s and/or the Project except any alteration or addition as per the provision of the Act and as required by any Government authorities or due to change in law.

The Allottee/s further acknowledge/s and confirms that the Promoter may, at any time, vary/modify the approved plans except for the Building in such manner as the Promoter may deem fit, subject to the sanction of the concerned authorities, without diluting the rights/entitlements of the Allottee/s and the Allottee/s hereby gives his/her/their no-objection and consent/s to the same.

- 1.2 The Recreational/Club House amenities and landscape outdoor amenities of the Project shall at all times remain common and shall be shared by all the residents of the Project. The Allottee/s hereby confirm/s and undertake/s that the Allottee/s and/or society/common organization of the Phase/Project shall not at any time raise any objection/ dispute / hindrance for any reason whatsoever for use of such Common Amenities by the Allottee/s/ / member / residents of the Project. Further, the costs and charges towards such Common Amenities shall be shared between all the Allottee/s / member/s / resident/s of the Project. The Allottee(s) hereby acknowledges, confirm and agree to the same and accordingly gives his/her/their no-objection and consent/s to the same.
- 1.3 The Allottee/s acknowledge and agree that, in the event the Promoter develops the whole or any portion of the Additional Lands, whether independently or as part of subsequent phase(s) of the Project, and integrates such development with the Project, the allottees, occupants, users and owners of such subsequent phase(s) and/or developments on the Additional Lands shall be entitled to jointly use and enjoy, in common with the Allottee/s of the Project, such common infrastructure, amenities and facilities forming part of the integrated development, including but not limited to the entrance, access roads, pathways, utility infrastructure, fire driveways, club house, services, podiums, parking areas, basements, landscaped areas and other common amenities and facilities, as may be provided by the Promoter from time to time in accordance with the sanctioned plans and applicable law.

2. Description of Apartment, Car Park(s) and Club House Amenities and landscape Outdoor Amenities & Sale Consideration:

- 2.1 At the request of the Allottee/s, the Promoter has agreed to sell to the Allottee/s and the Allottee/s has/have agreed to purchase from the Promoter, the Apartment which is more particularly described in the **Apartment** hereunder written and as shown in the **Floor Plan of the Apartment (Annexure-B)** being constructed in the Project along with the right to use the Club House and Landscape Open Amenities subject to payment of required fees, as more particularly described in the **Annexure 'E' – Part I & Annexure 'E' – Part II**, which is in common with other residents of the Project and any future development of the Promoter within / adjacent / near the Project Land\Larger Property.

- 2.2 The specifications, fixtures and fittings like the flooring, sanitary fittings and amenities with regard to the Apartment to be provided by the Promoter in the Building and the Apartment as are set out in **Annexure 'D'** annexed hereto or its equivalent thereof. The Allottee/s is/are satisfied about the specifications, fixtures and fittings agreed to be provided by the Promoter and undertake/s that the Allottee/s shall not raise any objection in respect thereof hereafter.
- 2.3 In consideration for the above, the Allottee/s hereby agrees to pay to the Promoter a total lump sum of ₹ _____ /- (**Rupees _____ Only**) ("**Sale Consideration**") for the purchase of **Schedule C Property** and **Schedule D Apartment** for residential use including the Car Park, other charges as more fully set out in **Annexure C** (Sale Consideration & Payment Plan) herein below.
- 2.4 Along with the aforementioned Sale Consideration, the Allottee/s agree(s) and undertake(s) to pay to the Promoter, amounts as specified in Clause 7.1 of this Agreement in the manner detailed/specified in Payment Plan (**Annexure C**) annexed hereto.
- 2.5 The Allottee/s has paid an initial amount of _____ /- (**Rupees _____ only**) to the Promoter as part payment towards the part Sale Consideration of the Apartment. The Allottee/s hereby agrees to pay the balance Sale Consideration and other charges towards the Apartment, as when demanded by the Promoter and in manner as specified therein, in accordance with the agreed **Payment Plan (Annexure C)** annexed hereto.
- 2.6 The Allottee/s agrees and understands that 10 % (ten percent) of the total consideration shall be the earnest money, being the part-payment of the total consideration, to ensure the due performance of the Agreement by the Allottee/s, which shall be forfeited in case of non-performance on the part of Allottee/s in terms set forth under this Agreement. ("**Earnest Money**").

3. **VARIATION IN AREA:**

The Promoter shall confirm the final Carpet Area to the Allottee/s after the construction of the Building is complete and the occupancy certificate is granted by the competent authority, by furnishing details of the changes, if any, in the Total Area. In the event of any variation in the Total Area of the Apartment, in case it exceeds +/- 3% the Sale Consideration payable for the Total Area shall be recalculated upon confirmation by the Promoter and in such event only recourse shall be a pro-rata adjustment in the last installment payable by the Allottee/s under this Agreement towards the Apartment with annual interest at the rate specified in the Rules (if applicable). If there is any increase

in the Carpet Area allotted to Allottee/s, the Promoter shall demand additional amount from the Allottee/s as per the next milestone of the Payment Plan, if applicable. All these monetary adjustments shall be made at the same rate per square meter as agreed under this Agreement.

4. PAYMENT SCHEDULE & MANNER OF PAYMENT:

- 4.1 The Allottee/s hereby agree/s and undertake/s to execute this Agreement on payment of 10% (Ten percent) of the Sale Consideration. Further, the Allottee/s shall make the payment as per the Payment Plan set out in **Annexure C** (the “**Payment Plan**”). The Promoter has the discretion to raise invoices for the milestones in accordance with the Payment Plan annexed hereto;
- 4.2 The Allottee/s shall make the respective payment as stipulated hereinabove along with applicable taxes strictly within fifteen (15) days of Promoter sending notice of each milestone as per the Payment Schedule annexed hereto. Intimation by email or in any other way forwarded by the Promoter to the Allottee/s that a particular stage of construction is initiated and/or completed shall be sufficient proof that a particular stage is initiated and/or completed and shall be valid and binding upon the Allottee/s and the Allottee/s agree/s not to dispute the same. The Promoter shall be entitled to raise demands based on the actual completion of construction milestones, notwithstanding any variation from the sequence set out in the payment plan, and the Allottee/s agrees to make payments in accordance with such demands. The Allottee/s hereby understand/s and agree/s that, save and except for the intimation from the Promoter as provided under this Clause, it shall not be obligatory on the part of the Promoter to send reminders regarding the payments to be made by the Allottee/s as per the Payment Plan mentioned in this Clause, and the Allottee/s shall make all payment/s to the Promoter on or before the due dates, time being the essence of this Agreement.

All payments to be made by the Allottee/s under this Agreement shall be by cheque/demand draft/pay order/wire transfer/any other instrument drawn in favour of “**GODREJ REGENT PARK COLLECTION**” with below account details:

Beneficiary's Name	: GPL GODREJ REGENT PARK COLLECTION
Beneficiary 's Account No.	: 57500001965137
Bank Name	: HDFC BANK
Branch Name	: Kasturba Gandhi Marg, Bengaluru Karnataka
Branch Bank Address	: Kasturba Road, Bangalore, Karnataka 560001
Swift Code	: HDFCINBB
IFSC Code	: HDFC0000009
MICR CODE	: 560240002

- 4.3 For the purpose of remitting funds from abroad by the Allottee/s, the following are the particulars of the beneficiary:

Beneficiary's Name : GPL GODREJ REGENT PARK COLLECTION
Beneficiary's Account No. : 57500001965137
Bank Name : HDFC BANK
Branch Name : Kasturba Gandhi Marg, Bengaluru Karnataka
Branch Bank Address : Kasturba Road, Bangalore, Karnataka 560001
Swift Code : HDFCINBB
IFSC Code : HDFC0000009
MICR CODE : 560240002

- 4.4 In case of any financing arrangement entered into by the Allottee/s with any financial institution with respect to the purchase of the Apartment, the Allottee/s undertake/s to direct such financial institution to and shall ensure that such financial institution, without any delay or default, timely disburses/pays all such installment of Sale Consideration and other charges due and payable to the Promoter under this Agreement through an account payee cheque/demand draft drawn in favour of **“GODREJ REGENT PARK COLLECTION”**. The Allottee/s agrees that in the event the Allottee/s avails any loan/or loan facilitation services (**“Services”**) from any external third party, the Allottee/s shall do so at his/her own cost and expense whatsoever and shall not hold the Promoter liable/responsible for any loss/defective service/claims/demands that the Allottee/s may have incurred due to the Services so availed.
- 4.5 Further, at the express request of the Allottee/s, the Promoter may at its sole discretion offer a rebate to the Allottee/s in case the Allottee/s desires to make early payments any time hereafter. It is hereby clarified that the foregoing rebate is subject to the Allottee/s complying with all his/her/their/its obligations under this Agreement including timely payment of the installments. Save as foregoing, the quantum of rebate once offered by the Promoter shall not be subject to any change/withdrawal. The Allottee/s further understand/s and agree/s that the Promoter shall have the sole right to accept or reject any early payments on such terms and conditions as the Promoter may deem fit. Any early payments received from the Allottee/s under this Clause shall be adjusted against future milestone payments due and payable by the Allottee/s. Any rebate applicable to such advance payments shall be adjusted only against the final installment.
- 4.6 In the event, the Promoter is required to refund any amounts in terms of this Agreement, the Promoter may refund such amounts to the bank account mentioned below. The Allottee/s agree to update the Promoter of any change in the Bank account details

immediately and shall not hold the Promoter liable in case of Allottee/s' failure in this regard.

Name of Account Holder	Bank Account No.	Name of the Bank and Branch	IFSC
_____	_____	_____	_____

4.7 If any of the payment cheques/banker's cheque or any other payment instructions of/by the Allottee/s is/are not honoured for any reason whatsoever, then the same shall be treated as default under this Agreement and the Promoter may at its option be entitled to exercise the recourse available under this Agreement. Further, the Promoter may, at its sole discretion, without prejudice to its other rights, charge a payment dishonor charge of ₹5,000/- (Rupees Five Thousand only) for dishonor of a particular payment instruction for first instance and for second instance the same would be ₹10,000/- (Rupees Ten Thousand only) in addition to the Interest for delayed payment. Thereafter, no cheque will be accepted, and payments shall be accepted through bank demand draft(s) only.

4.8 The Sale Consideration is escalation-free, save and except escalations/ increases/ impositions levied by any statutory authority(ies), local bodies/ government, competent/planning authorities ("**Authorities**") from time to time or any statutory charges/payments including but not limited to development charges, external development charges, infrastructure development charges, premiums and/or all other charges, payments, surcharges, cesses, taxes, levies, duties, etc. payable to Authorities.

5. TAXES:

5.1 The Sale Consideration and other charges payable under this Agreement exclude Taxes. Taxes include Goods and Services Tax (GST), land under construction tax, property tax, or other taxes, duties, cesses, levies, charges which are leviable or become leviable under the provisions of the Relevant Laws or any amendments thereto pertaining or relating to the sale of Apartment.

5.2 For the purpose of this Agreement for Sale,

- i. "**GST**" means and includes any tax imposed on the supply of goods or services or both under GST Law.
- ii. "**GST Law**" shall mean and include the Integrated Goods & Service Tax Act, GST (Compensation to the States for Loss of Revenue) Act, Central Goods & Services Tax Act and State Goods & Services Tax Act / UTGST, and all related ancillary legislations, rules, notifications, circulars, statutory orders etc.

iii. *“Cess” shall mean and include any applicable cess, existing or future on the supply of goods or services or both under GST Law or any other relevant laws.*

- 5.3 Taxes shall be payable by the Allottee/s on demand made by the Promoter within 7 (seven) working days (delay would attract interest as agreed under this Agreement and such penalty as may be imposed by the authority/ties), and the Allottee/s shall indemnify and keep indemnified the Promoter from and against the same.
- 5.4 The Allottee/s and/or his/her/their transferee shall additionally be liable to pay all applicable taxes, duties, levies, cess, statutory charges including GST or Other Charges (with taxes thereon) existing or levied hereafter and/or due to change in interpretation or application of any tax as may be applicable and levied by the Central/State Government or any other authority at the applicable rate simultaneously with the payments of each instalment of amounts payable under this Agreement, if so required under the Relevant Laws.

6. TAX DEDUCTED AT SOURCE:

- 6.1 The Allottee/s is/are aware that the Allottee/s must deduct the applicable Tax Deduction at Source (TDS) at the time of making of actual payment or credit of such sum to the account of the Developer, whichever is earlier as stipulated under section 393(1) [Table: S. No. 3(i)] of the Income Tax Act, 2025, i.e. TDS applicable as per law on purchase of an immovable property, and within timelines as prescribed under the laws . Further, the Allottee/s shall submit the original TDS certificate within the prescribed timelines mentioned in the Income Tax Act, 2025 and the rules framed thereunder.
- 6.2 The Allottee/s is/are aware that, in terms of the applicable provisions of the Income-tax Act, 2025, including Section 393(1) read with Sl. No. 3(i) of the Table thereof, the Allottee/s is/are required to deduct Tax Deducted at Source (“TDS”) at the time of making actual payment or crediting such sum to the account of the Promoter, whichever is earlier, and to deposit the same by filing the challan-cum-statement in **Form 141** with the Government within 30 (Thirty) days from the end of the month in which amount is actually paid/ credited to the account of the Developer. Thereafter, the Allottee/s is/are required to provide TDS certificate/s to the Developer within 15 days from the due date for furnishing the challan-cum-statement in Form 141.
- 6.3 Notwithstanding the aforesaid statutory timeline, the Purchaser/s hereby agrees and undertakes that, in terms of this Agreement, upon receipt of any invoice / demand notice from the Developer / Promoter in accordance with the milestones more particularly set out in **Annexure C** hereto, the Purchaser/s shall deduct and deposit the applicable TDS

with the Government within 15 (Fifteen) days from the date of receipt of such invoice / demand notice.

6.4 The Allottee/s further agrees and undertakes to furnish to the Developer / Promoter the original TDS certificate, namely **Form 132** as prescribed under the Income-tax Rules, 2026, within the aforesaid period of 15 (Fifteen) days from the date of receipt of the invoice / demand notice.

6.5 For the sake of clarity, the Allottee/s shall, within the aforesaid period of 15 (Fifteen) days from the date of receipt of the invoice / demand notice issued by the Developer / Promoter: (i) deduct and deposit the applicable TDS with the Government; and (ii) furnish the corresponding original TDS certificate to the Developer / Promoter.

7. PAYMENT OF OTHER CHARGES:

7.1 The Allottee/s shall on or before delivery of possession of the said Apartment deposit and keep deposited with the Promoter such estimated amounts as more particularly described in the Payment Plan (**Annexure C**) hereinbelow and shall be referred to as “**Estimated Other Charges**”, which shall be transferred to the Association of Owners/Apex Body at the time of handover of the Project to the Association of Owners/Apex Body, as the case maybe.

7.2 The Allottee/s agrees that the Promoter shall have a right to adjust the amounts incurred by the Promoter towards the maintenance and upkeep of the Project, Club House Amenities and landscape Outdoor Amenities from the amounts to be paid by the Allottee/s under Clause 7.1 of this Agreement, without any reference to the Allottee(s)/ Common Organization / Apex Body/ Apex Bodies.

7.3 The Allottee/s shall on demand pay to the Promoter the amount towards membership fee for the Association of Owners / Apex Body/ies, deposit towards water connection charges, deposit towards electric connection charges including setting up of sub-station, deposit towards gas connection charges, proportionate share of taxes, other charges / levies in respect of the society or limited company / federation / Apex Body and any other charge (if any applicable) as may be decided by the Promoter/the Association of Owners/Apex Body/ies towards availing any amenities or forming part of the Project and shall not dispute the same.

7.4 It is clarified that the amounts to be paid by the Allottee(s) under Clause 7.1 and Clause 7.3 of this Agreement are estimated and subject to variation. The actual amounts payable by the Allottee(s) shall be informed by the Promoter to the Allottee(s) at the time of raising the demand towards the said amounts. The Allottee/s hereto agrees,

confirms and acknowledges that all estimated & tentative charges as mentioned above or in any other part of this Agreement are tentative and are subject to change.

8. LEGAL CHARGES FOR FORMATION OF SOCIETY / LIMITED COMPANY / FEDERATION / APEX BODY:

The Allottee/s shall on demand pay to the Promoter a sum, as may be decided by the Promoter, towards meeting all legal cost, charges, stamp duty, registration fee and related expenses, including professional costs of Advocates/Solicitors of the Promoter in connection with formation of the society / limited company / federation / Apex Body, transfer of Club House Amenities and landscape Outdoor Amenities if applicable and for preparing its rules, regulations, bye-laws, etc. and the cost of preparing and engrossing the conveyance.

9. PROMOTER TO APPROPRIATE DUES:

The Allottee/s authorize/s the Promoter to adjust/appropriate all payments made by him/her/them under any head(s) of dues against lawful outstanding, if any, in his/her/their name/s as the Promoter may in its sole discretion deem fit and the Allottee/s undertake/s not to object/demand/direct the Promoter to adjust payments in any manner.

10. TIME IS OF ESSENCE:

10.1 Time is essence for the Promoter as well as the Allottee/s. The Promoter shall abide by the time schedule for completing the Project and handing over the Apartment to the Allottee/s and the Club House Amenities and landscape Outdoor Amenities to the Association / Apex Body after receiving the occupancy certificate or the completion certificate or both, as the case may be.

10.2 Similarly, the Allottee/s shall make timely payments of the instalment and other dues payable by him/her/them as and when called upon by the Promoter to do so under this Agreement and shall comply with the other obligations under this Agreement.

11. INTEREST:

11.1 All outstanding amounts payable by any Party under this Agreement to other Party shall carry applicable interest at the rate of (i) 2% (two percent) above the then existing SBI MCLR (State Bank of India – Marginal Cost of Lending Rate) per annum or (ii) such other rate of interest higher/ lower than 2% as may be prescribed under the Act/ Rules (“**Interest**”) from the date they fall due till the date of receipt/realization of payment by

the other Party subject to applicable taxes, on all the amounts paid by the Allottee/s, for every month of delay, till the handing over of the possession;

- 11.2 Any overdue payments so received will be first adjusted against Interest then towards statutory dues and subsequently towards outstanding principal amounts.
- 11.3 Without prejudice to the other rights of the Promoter hereunder, the Promoter shall in respect of any amounts remaining unpaid by the Allottee/s under this Agreement or/and as demanded by the Promoter, have a first charge / lien on the Apartment and the Car Park(s) and the Allottee/s shall not transfer his/her/their/its rights under this Agreement, in any manner whatsoever, without making full payment of all amounts payable by the Allottee/s to the Promoter. It is hereby clarified that for the purposes of this Agreement payment shall mean the date of credit of the amount in the account of the Promoter.

12. FLOOR AREA RATIO OR FLOOR SPACE INDEX:

- 12.1 The Allottee/s has/have been informed and acknowledge(s) that the FSI proposed to be consumed in the Project may not be proportionate to the area of the land area on which the Project is being constructed. The Promoter may allocate such buildable FSI for each of the buildings being constructed on the Project Land in accordance with Approvals as may be required under Relevant Laws.
- 12.2 The Allottee/s acknowledge(s) that the Promoter alone is entitled to utilize and deal with all the development potential of the Larger Property including the existing and future FSI and/or transferable development rights (“**TDR**”) hereto for sanctioned or as may hereafter be sanctioned and shall be entitled to use any or all of such FSI and/or TDR for construction of buildings and development of facilities and/or amenities elsewhere as may be permitted and the Promoter obtaining approvals as may be required under relevant laws.
- 12.3 The Allottee/s further acknowledge(s) that, the Promoter at its sole discretion may sell/transfer its stake in the Project to any person as it deems fit, in accordance with the approvals as per then relevant laws. The Allottee/s has/have entered into this Agreement knowing fully well the scheme of development to be carried out by the Promoter on the Larger Property / Project Land.
- 12.4 All FSI and/or TDR at any time available in respect of the Project and/or the Larger Property or any part thereof always belong absolutely to the Promoter until the execution of the conveyance to the Allottee/s of the apartment / Association of Owners / Apex Body.

- 12.5 The unutilized / residual FSI (including future accretions / enhancement due to change in law or otherwise) in respect of the Project shall always be available to and shall always be for the benefit of the Promoter and the Promoter shall have the right to deal / use the FSI / TDR as it may deem fit, without any objection/interference from the Allottee/s / association / Apex Body. In the event of any additional FSI in respect of the Project and/or Schedule A Property, as the case maybe, or any part thereof being increased as a result of any favourable relaxation of the relevant building regulations or increase in incentive FSI or otherwise, at any time, hereafter, the Promoter alone shall be entitled to the ownership and benefit of all such additional FSI for the purpose of the development and/or additions to the built up area on the Project land/Schedule A Property as may be permissible under applicable law. However, the Promoter will not have right on such additional FSI after conveyance of all the apartments in the Project to the respective Allottee/s and hand over of the project to the Association / Apex Body.
- 12.6 It is also agreed by the Allottee/s that even after the formation of the Association of Owners / Apex Body, the Promoter, in accordance with the Relevant Laws, shall be entitled to utilize further development potential (including fungible FSI), by putting up further construction on the Project land and shall thereby continue to retain full right and authority to develop the Project land and to utilize the entire FSI and/or any incremental development potential that may be available from time to time. Further, such potential or additional construction shall at all times be the sole property of the Promoter who shall be at the liberty to use, dispose off, sell or transfer the same in such manner as the Promoter may deem fit until the execution of the conveyance to the Allottee/s of the apartment / Association of Owners / Apex Body.

13. ADHERENCE TO SANCTIONED PLANS

The Promoter hereby agrees to observe, perform and comply with all the terms, conditions, stipulations and restrictions, if any, which may have been imposed by the concerned local authority at the time of sanctioning of the said plans or thereafter and shall before offering possession of the Apartment to the Allottee/s obtain from the concerned local authority occupancy certificate in respect of the Apartment.

14. POSSESSION:

- 14.1 The Promoter shall offer possession of the Apartment to the Allottee/s, after obtaining the occupancy certificate for the Project on or before the end date of the Project Completion as registered with the RERA Authority i.e. **31.07.2031** (“**Delivery Date**”) and deliver the Club House Amenities and landscape Open Amenities, as mentioned under the **Annexure ‘E’ Part – I and Part II** to the Association of Owners/Apex Body on or before the Delivery Date, subject to the Allottee/s being in compliance of all

his/her/their /its obligations under this Agreement including timely payments of all amounts. The Allottee/s shall cooperate with the Promoter in taking handover of the Apartment in a smooth manner as and when called upon by the Promoter to do so, after making payment of the entire Sale Consideration and other charges as per the Payment Schedule. Provided however, the Allottee/s understand/s and consent/s that the Delivery Date and handing over of the Club House Amenities and landscape Outdoor Amenities shall stand extended on account of (i) any force majeure events and/or the (ii) events which are not within the control of the Promoter and/or its agents and/or (iii) due to non-compliance on the part of the Allottee/s including on account of any default on the part of the Allottee/s (“**Extension Event**”). For the purpose of this Agreement, “Force Majeure” event shall also include (a) war, flood, drought, fire, cyclone, earthquake, civil commotion, epidemic, pandemic, or act of God or any other calamity caused by nature affecting the regular development of the Project.

- 14.2 The Promoter shall retain the right to use the recreational area/club house, as sales office/project office until the handover of the club house to the Association as per the Clause 14.1. The Allottee hereby expressly agrees and undertakes that neither the Allottee nor the Association shall raise any objection, dispute, claim, or hindrance whatsoever with respect to such continued use by the Promoter during the aforesaid period.
- 14.3 The Promoter and Purchaser/s further agree that the possession of the Apartment will be handed over to the Purchaser/s upon execution and registration of Sale Deed of the Apartment.
- 14.4 Further, in the event the Promoter is unable to handover possession of the Apartment on or before the Delivery Date for any reasons other than those set out in the foregoing and subject to reasonable extension of time, then on demand in writing by the Allottee/s, the Promoter shall refund the amounts received from the Allottee/s along with applicable Interest from the date of payment of such amount till refund thereof. Post such refund by the Promoter to the Allottee/s, the Allottee/s agree/s and acknowledge/s that the Allottee/s shall not have any right, title interest in the Apartment, and the Promoter shall be entitled to deal with the same at its sole discretion irrespective of pending dispute, if any.

15. MANNER OF TAKING POSSESSION:

- 15.1 The Promoter, upon obtaining the occupancy certificate from the competent authority shall offer in writing the possession of the Apartment, to the Allottee/s in terms of this Agreement to be taken. The Allottee/s shall take possession of the Apartment within 30 (thirty) days from the date of the Promoter offering possession (“**Possession Intimation Date**”) of the Apartment, by executing and registering the Sale Deed, all necessary documents, indemnities, declarations and such other documentation as prescribed in this Agreement, at the cost of the Allottee/s, and accordingly the Promoter shall give possession of the Apartment to the Allottee/s. Upon receiving possession of the Apartment or expiry of the said 30 days from offering of the possession (“**Possession Date**”), the Allottee/s shall be deemed to have accepted the Apartment, being satisfied with its completion in all aspects, in consonance with this Agreement, and shall thereafter, not have or make any claim/s, against the Promoter, with respect to any item of work alleged not to have been carried out or completed. The Allottee/s expressly understand/s that from such date, the risk and ownership to the Apartment shall pass and be deemed to have passed to the Allottee/s.
- 15.2 The Allottee/s hereby agree/s that in case the Allottee/s fail/s to respond and/or neglects to take possession of the Apartment as agreed within the time stipulated by the Promoter, then the Allottee/s shall in addition to the above, pay to the Promoter holding charges at the rate of ₹500/- (Rupees Five hundred only) per month per square meter of the Total Saleable Area/Super Built-up Area of the Apartment (“**Holding Charges**”) and applicable maintenance charges towards upkeep and maintenance of Club House Amenities and landscape Outdoor Amenities (if any) for the period of such delay. During the period of said delay the Apartment shall remain locked and shall continue to be in possession of the Promoter but at the sole risk, responsibility, liability and cost of the Allottee/s including deterioration and related physical condition of the Apartment.
- 15.3 Notwithstanding anything contained in this agreement, it is agreed between the Parties that upon receipt of the occupancy certificate issued by the concerned competent authority for the said Apartment/Flat, none of the parties shall be entitled to terminate this Agreement. It is however clarified that upon receipt of the occupancy certificate, in case the Allottee/s default/s in any manner and/ or fail/s to respond and/or neglect/s to take possession of the Apartment within the aforementioned time as stipulated by the Promoter, then the Promoter shall be entitled along with other rights under this Agreement, to terminate and/or forfeit/claim the entire Sale Consideration towards the Apartment along with Interest on default in payment of instalments (if any), applicable taxes and any other charges/amounts. The Allottee/s further agree/s and acknowledge/s that the Promoter’s obligation of delivering possession of the Apartment shall come to an end on the expiry of the time as stipulated by the Promoter for the purpose and that subsequent to the same, the Promoter shall not be responsible and/or liable for any

obligation towards the Allottee/s in any manner whatsoever for the possession of the Apartment.

16. OUTGOINGS:

- 16.1 From the Possession Intimation Date the Promoter, the Allottee/s shall be liable to bear and pay the proportionate share of outgoings in respect of the Project and Building namely local taxes, betterment charges or such other levies by the concerned local authority and/or Government water charges, BESCOM Charges insurance, common lights, repairs and salaries of clerks bill collectors, security agency, sweepers and all other expenses necessary and incidental to the management and maintenance of the Project.
- 16.2 The Promoter shall, at its own cost and expense, secure a dedicated electricity supply/power connections to the Project and the Schedule C Property either through Low Tension (LT) or High Tension (HT) connection, as may be determined by the Promoter based on technical feasibility and approvals from the concerned authority, and the Promoter shall have the right, at any time, to convert, upgrade, or modify such supply from LT to HT or vice versa. The Allottee/s shall have no objection to the installation of necessary electrical infrastructure including transformers, substations, cabling and allied systems within the Project, and agrees to bear and pay, on a proportionate basis, all costs and charges relating to such infrastructure and any such conversion or upgradation, as and when demanded, including after execution and registration of the Sale Deed, and shall execute all documents as may be required by the electricity authority, and upon handover, such infrastructure shall vest with the Association/Electricity department as the case may be subject to settlement of all dues, in compliance with applicable laws including the RERA.
- 16.3 The Allottee is further aware that this Project is Net zero waste to landfill Project. The Allottee undertakes to segregate waste as per waste guidelines provided by Town Municipal Corporation or any other State body. The Allottee undertakes and cause the Association to compost 100% of food waste and garden waste of the Project at the organic waste management area provided in the Project.
- 16.4 The Allottee is aware that the Project has been designed to have low flow fixtures of water, which enable water and energy savings. The Allottee undertakes and causes the Association to maintain the aerators, and not tamper with the same which may hamper the water savings leading to increased pumping costs.
- 16.5 The Allottee undertakes and cause the Association to maintain and not tamper with the roof top solar if any provided in the Project.

- 16.6 The Allottee undertakes and cause the Association to maintain and not tamper with the roof so as to increase efficiency of roof High SRI paint and harvesting of clean water from terrace acting as a catchment area.
- 16.7 All Net zero certifications shall be valid for a period of three years by IGBC from the issue date. It is recommended to the association to continue maintaining all the green building requirements and renew the certifications after validity expiry.
- 16.8 Until the handing over of maintenance of the Project (including the Building) to the Association of Owners/Apex Body, as the case maybe, the Allottee/s shall pay to the Promoter such proportionate share of outgoings as may be determined by the Promoter in its absolute discretion. The Allottee/s hereby agrees to bear estimated maintenance cost at actuals plus management fee, if required, as demanded by the Promoter, over and above the maintenance cost included in the Payment Plan attached with this Agreement herein below, until the handover of the Project to the Association of Owners/Apex Body/ies. The Allottee/s further agrees that till the Allottee/s's share is so determined, the Allottee/s shall pay to the Promoter provisional monthly contribution as determined by the Promoter from time to time. The amounts so paid by the Allottee/s including charges towards maintenance and sinking to the Promoter shall not carry any interest and remain with the Promoter until the Project is handed over to the Association of Owners/Apex Body as aforesaid. Upon handing over of maintenance of the Project, the balance amount of deposits collected from the Allottee/s towards the upkeep and maintenance of the Project shall be paid over by the Promoter to the Association of Owners/Apex Body, as the case maybe.
- 16.9 The Promoter shall maintain a separate account in respect of sums received by the Promoter from the Allottee/s as advance or deposit towards maintenance, contingency/sinking fund, out goings and legal charges and shall utilize such amounts only for purposes for which they have been received.
- 16.10 The Project is presently not connected with water from the Relevant Authority, the source of water is outsourced and the charges for the same will be part of maintenance charges and shall be paid by the Allottee/s along with other residents of the Project.
- 16.11 In case, the transaction being executed by this Agreement between the Promoter and the Allottee/s involves a registered real estate agent who is also registered with the Promoter, both the Promoter and the Allottee/s shall be individually liable for the payment of all amounts (including taxes) agreed as payable remuneration/fees/charge for services/commission/brokerage to the registered real estate agent/channel

partner/broker. Each party shall fulfill their respective obligations in accordance with the agreed terms of payment.

17. DEFECT LIABILITY PERIOD

- 17.1 If the Allottee/s bring/s to the notice of the Promoter any structural defect in the Apartment/Building within a period stipulated under the relevant laws, i.e. 5 (five) years from the Possession Intimation Date/Possession handover date, whichever is earlier of the Apartment/Building, it shall be rectified by the Promoter without further charge to the Allottee/s. If despite offer of possession by the Promoter, the Allottee/s fails to come forward and secure possession of the Apartment / Building, then the Defect Liability Period shall deem to be commenced from the date of intimation of possession to the Allottee/s and Allottee/s then shall have no objection for the same. However, Parties agree and confirm that the decision of the certified architect agreed by the parties shall be final in deciding whether there is any actual structural defect in the Apartment / Building or defective material being used or regarding workmanship, quality or provision of service.
- 17.2 In case any such rectification, reasonably and in the ordinary course, requires additional time beyond the stipulated period under the Relevant Laws, having regard to the nature of defect, then the Promoter shall be entitled to such additional time period, provided an intimation thereof has been provided to the Allottee/s the association / the maintenance agency, as the case may be. The Allottee/s hereby agrees to such additional time/extension of time.
- 17.3 However, it is further agreed between the Parties hereto that, after the Possession Date, the Promoter shall not be liable for any rectification of defect due to any act, omission, default or negligence attributable to the Allottee/s and/or any other Allottee/s/ third party in the Phase or failure of the Allottee/s to maintain Apartment in a diligent manner or non-compliance of any applicable laws by the Allottee/s; any force majeure events; where the manufacture warranty expires and the Allottee/s/ association/society/federation fails to renew the annual maintenance contracts during the defect liability period.
- 17.4 It is further agreed between the Parties hereto that, the Project as the whole has been conceived, designed and constructed based on the commitment and warranties given by the vendors, manufacturers, wherever applicable, that all equipment, fixtures and fittings shall be maintained and covered by the maintenance / warranty contracts so as it to be sustainable and proper working condition to continue warranty in Apartment and the Club House Amenities and landscape Outdoor Amenities of the Project/ Phase, wherever applicable. The Promoter having procured the equipment, fixtures and fittings

of standard makes, shall not be liable for any defects relating to the same and the same shall be governed by their respective warranties provided by their manufactures/ installers. Any claim or dispute in relation thereto shall be raised by the Allottee/s directly with the manufactures/ installers and the usage of such equipment, fixtures and fittings shall be as per the usage guidelines as provided by the Promoter / the manufactures/ the maintenance agency / the association.

- 17.5 It is clarified that the Promoter shall not be liable for any such defects if the same have been caused by reason of the default and/or negligence of the Allottee/s and/or any other Allottee/s in the Project or acts of third party(ies) or on account of any force majeure events including on account of any repairs / redecoration / any other work undertaken by the Allottee/s and/or any other Allottee/s/person in the Project and/or the whole project. The Allottee/s is/are aware and agree(s) and confirm(s) that the said Premises shall be of RCC structure with normal brick/block wall/dry wall with gypsum/putty/cement plaster. The Allottee/s is/are aware that the said Tower is a monolithic structure and any change(s), alteration(s) including breaking of walls or any structural members or the construction of any new wall or structural member may adversely impact the said Tower at various places or in its entirety and hence any change(s) or alteration(s) as mentioned hereinabove will result in immediate ceasing of the Promoter's obligation to rectify any defect(s) or compensate for the same as mentioned in this clause and the Allottee/s/the Society/the Other Societies/the Apex Body shall have no claim(s) of whatsoever nature against the Promoter in this regard.

18. CLUB HOUSE/RECREATIONAL AREA AND FACILITIES:

- 18.1 The Allottee/s is informed and aware about the Club house to be built/constructed in the Common Area is as per the rules and regulations prescribed by the concerned competent authority, for the use and benefit of all the residents of the Project from time to time. The Allottee/s shall be bound by the rules, regulations and bye-laws framed by the Association of Owners/Apex Body, as the case may be, for using the Club House and other amenities and facilities forming part of the Club House/Project. The amenities and facilities stated in **Annexure E (Part I & II)** shall be available for the enjoyment of the residents of the Project as and when such amenities and facilities are completed and are made available in the manner mentioned above.
- 18.2 The Allottee/s shall be entitled to use and enjoy the amenities and facilities in the Club House along with the other residents and occupants of the Project. The Allottee/s further acknowledge and agree that, in the event the Promoter develops the whole or any part of the Additional Lands, whether independently or as part of subsequent phase(s) of the Project, and integrates such development with the Project, the residents, occupants, users and owners of such development(s) on the Additional Lands shall also be entitled

to jointly use and enjoy the Club House and the amenities and facilities provided therein, in common with the Allottee/s and other residents of the Project, in terms of Clause K of the Recitals. The Allottee/s further acknowledge and agree that the Club House building, together with all amenities and facilities provided therein, shall be handed over to the Apex Association, Association of Owners and/or such competent authority as may be required under applicable law, in accordance with the terms of this Agreement and the Relevant Laws, including all applicable rules, regulations and directions of the concerned statutory authorities.. In addition to the above rules, the Allottee/s has also agreed to abide by the following terms:

- a. The Club House's and its facilities is available to the Allottee/s as long as the Allottee/s is/are the owner of the Apartment. In the event of the sale or transfer of ownership of the Apartment by the Allottee/s, the transferee shall become entitled to the membership of the said Club House and facility and the Allottee/s herein shall no longer be the member of the Club House and its facilities/amenities.
- b. The Allottee/s is informed and made aware that all the owners/occupants of the Project may also be entitled to the use of this Club House's and its facilities/amenities as members of the integrated development. Such owners/ occupants shall enjoy the facilities without any hindrance as enjoyed by the Allottee/s herein in the **Schedule B Property** and will also be abided and liable to the same terms and conditions as other owners/occupants and shall be liable to pay the subscription/membership and maintenance charges as the owners/occupants of the **Schedule B Property**.
- c. The Allottee/s is informed and made aware that the Promoter shall be responsible to the extent of creating provisions for the services/facilities/amenities forming part of the Club House's and shall not be held responsible for facilitating and/or running such services/facilities/amenities.
- d. Handover of the Club House will be at the sole discretion of the Promoter and it is not linked to handover of the Apartment to the Allottee/s.
- e. The use of Club House's and facility by the Allottee/s shall apart from the other rules and regulation shall be in the following manner:
 - In the event, Apartment is purchased by a partnership firm or any Association of Persons (AOP) then only the person occupying the Apartment shall be entitled to use the Club House and facility.
 - In the event of the Apartment being purchased by a Public Limited or a Private Limited Company, then in that event only the person (not exceeding 3 persons)

authorized by the company to occupy the Apartment shall be entitled to the use of the Club House and its facilities/amenities.

- In case of inheritance of the Apartment, then in that event, the person inheriting / occupying the Apartment shall be entitled to membership of the said Club House and facility.

18.3 In the event of there being co-owners of Apartment, in such case, such co-owners occupying the Apartment shall be entitled to the use of the Club House and its facilities/amenities. In any other case like tenancy, lease, license etc., the occupier of the Apartment will be entitled to the use of the said Club House and its facilities/amenities.

19. FOREIGN EXCHANGE MANAGEMENT ACT:

The Allottee/s clearly and unequivocally confirm/s that in case remittances related to the Sale Consideration and/or all other amounts payable under this Agreement for the Apartment are made by non-resident/s/foreign national/s of Indian origin, shall be the sole responsibility of the Allottee/s to comply with the provisions of the Foreign Exchange Management Act, 1999 (“**FEMA**”) or statutory enactments or amendments thereof and the rules and regulations thereunder and/or any other Relevant Laws including that of remittance of payments, acquisition/sale or transfer of immovable property/ies in India and provide to the Promoter with such permission/approvals/no objections to enable the Promoter to fulfill its obligations under this Agreement. Any implications arising out of any default by the Allottee/s shall be the sole responsibility of the Allottee/s. The Promoter accepts no responsibility in this regard and the Allottee/s shall keep the Promoter fully indemnified for any harm or injury caused to it for any reason whatsoever in this regard. Whenever there is a change in the residential status of the Allottee/s, subsequent to the signing of this Agreement, it shall be the sole responsibility of the Allottee/s to intimate in writing to the Promoter immediately and comply with all the necessary formalities, if any, under the Relevant Laws.

20. ANTI-MONEY LAUNDERING:

20.1 The Allottee/s hereby declare/s, agree/s and confirm/s that the monies paid/payable by the Allottee/s under this Agreement towards the said Apartment is not involved directly or indirectly to any proceeds of the scheduled offence and is/are not designed for the purpose of any contravention or evasion of the provisions of the Prevention of Money Laundering Act, 2002, rules, regulations, notifications, guidelines or directions of any other statutory authority passed from and/or amended from time to time (collectively “**Anti Money Laundering**”).

- 20.2 The Allottee/s further declare/s and authorize/s the Promoter to give personal information of the Allottee/s to any statutory authority as may be required from time to time. The Allottee/s further affirms that the information/ details provided is/are true and correct in all respect and nothing has been withheld including any material facts within his/her/their/its knowledge.
- 20.3 The Allottee/s further agree/s and confirm/s that in case the Promoter becomes aware and/or in case the Promoter is notified by the statutory authorities of any instance of violation of Anti- Money Laundering, then the Promoter shall be entitled to cancel/terminate this Agreement. Upon such termination the Allottee/s shall not have any right, title or interest in the said Apartment neither have any claim/demand against the Promoter, which the Allottee/s hereby unequivocally agree/s and confirm/s. In the event of such cancellation/termination, the monies paid by the Allottee/s till such date shall be refunded by the Promoter to the Allottee/s in accordance with the terms of this Agreement only after the Allottee/s furnishing to the Promoter a no-objection / consent letter from the statutory authorities permitting such refund of the amounts to the Allottee/s.
- 20.4 Furthermore, the Allottee/s acknowledge(s) and confirm(s) that the Apartment is not and shall not be the subject matter of a benami transaction as defined under the Benami Property Transactions Act, 2016 ("Benami Act"). The Allottee/s understand(s) and agree(s) that in the event the Apartment is found to be a 'benami property' as defined under the said Act and any proceedings are initiated under the Act against the Promoter or the Apartment, the Promoter shall have the right to take appropriate legal action to protect its interests and the interests of bona fide Allottee/ss. The Allottee/s shall fully cooperate with the Promoter and provide any assistance and documentation as may be required in such proceedings.
- 20.5 It is also expressly agreed by the Allottee/s that in the event the Apartment is confiscated by the appropriate authorities under the provisions of the Benami Property Transactions Act, 2016, the Promoter shall not be liable to refund any amount paid by the Allottee/s under this Agreement, and the Allottee/s shall have no claim, whatsoever, against the Promoter in respect of such confiscated property, unless there is a court order.

21. DEFAULT BY PURCHASER/S:

- 21.1 In the event if the Allottee/s fails or neglects to (i) make the payment of the Sale Consideration or a part thereof or any installment in accordance with terms of this Agreement and all or any other amounts due including but not limited to Estimated Other Charges due from the Allottee/s as mentioned in this Agreement on due dates

and/or (ii) fails to comply with any of its obligations, terms conditions as set out/agreed in this Agreement, the Promoter shall be entitled, without prejudice to other rights and remedies available to the Promoter including charging of Interest for delayed from the date on which the such payment becomes due and/or may opt to terminate the transaction after giving 30 (thirty) days prior notice to the Allottee/s.

- 21.2 In case the Allottee/s fails to rectify the default within the aforesaid period of 30 days then the Promoter without being obligated to give any further notice shall be entitled, at its sole option, to terminate this Agreement and forfeit (a) Earnest Money from the amounts paid till such date and (b) Interest on any overdue payments and (c) brokerage paid to channel partners/brokers, if any, and (d) administrative charges as per Promoter's policy and (e) all taxes paid by the Promoter to the Authorities and (f) amount of stamp duty and registration charges to be paid on deed of cancellation of this Agreement, if Agreement is registered and (g) any other taxes which are currently applicable or may be applicable in future and (h) subvention cost (if the Allottee/s has opted for subvention plan) which the Promoter may incur either by way of adjustment made by the bank in installments or paid directly by the Promoter to the bank and (i) stamp duty and registration charges on this Agreement if paid by the Promoter under and scheme and (j) no-cost EMI charges, if any paid by the Promoter under any scheme (collectively referred to as the "**Non-Refundable Amounts**"). Balance amounts, if any, without any liabilities towards costs/damages/interest etc. shall be refunded without interest whatsoever. simultaneously upon the Allottee/s executing and registering the deed of cancellation and such other document ("Deed") as may be demanded by the Promoter, within 15 (fifteen) days of termination, failing which the Allottee shall indemnify the Promoter for all loss suffered and that the Promoter without any further notice to the Allottee/s shall be entitled to proceed to execute /register the Deed with the appropriate Sub-Registrar, as an authorized constituted attorney / power of attorney holder of the Allottee/s for such purposes constituted under this indenture and the Allottee/s hereby acknowledges and confirms the same and undertakes not to raise any claim, demand, compliant or liability on the Promoter. The Parties have agreed that the Power given by the Allottee/s to the Promoter to execute and register the said "Deed" shall survive and continue to vest with the Promoter even after termination or cancellation of this Agreement. The Parties further confirm that post the refund of any balance amount, the Promoter shall have the unfettered right to sell/transfer the Apartment including but not limited to Car Park(s) to any third party. For the sake of clarity, the interest and/or taxes paid on the Sale Consideration shall not be refunded upon such cancellation / termination. Further, upon such cancellation or termination, the Allottee/s shall not have any right, title and/or interest in the Apartment and/or Car Park(s) and/or the Schedule B **Property** and the Allottee/s waives his/her/their/its right to claim and/or dispute against the Promoter in any manner whatsoever. The Allottee/s acknowledges and confirms that the provisions of this clause shall survive termination

of this Agreement. Notwithstanding, the above, in the event the Allottee/s fails to execute and/or admit registration of the Deed in the manner aforesaid, then upon issuance of the termination notice by Promoter, this Agreement shall ipso facto stand terminated/cancelled for all intents and purposes, without any further recourse to any of the Parties.

22. TERMINATION BY ALLOTTEE/S PRIOR TO RECEIPT OF OCCUPATION CERTIFICATE:

- 22.1 In the event, the Allottee/s intend/s to terminate this Agreement for reasons other than those attributable to the Promoter's default, then the Allottee/s shall give a prior written notice ("Notice") of 60 (sixty) working days to the Promoter expressing his/her/their/its intention to terminate this Agreement. The Allottee/s shall also return all documents (in original) with regards to the transaction under this Agreement to the Promoter along with the Notice. Upon receipt of Notice for termination of this Agreement by the Allottee, this clause shall be dealt with in accordance with clause above (21.2) and other parts of the agreement by which the Promoter shall be entitled to forfeit the Non-Refundable Amounts. The Allottee/s further agrees and undertakes that on occurrence of such event of termination, the Allottee/s agree/s to return all documents (in original) with regards to this transaction to the Promoter, comply with all other requirements of the Promoter as would be required for effective termination of this Agreement including but not limited to timely execution of any such other document as may be required under the Relevant Laws within 15 (fifteen) days of termination, failing which the Promoter shall be entitled to proceed to execute such other documents, as may be necessary. Upon such termination, the Allottee/s agree(s) and acknowledge(s) that the Allottee/s shall not have any right, title and/or interest in the Apartment and/or Car Park(s) and/or the Project and/or the Project land and the Allottee/s waives his/her/their/its right to claim and/or dispute against the Promoter in any manner whatsoever. Further, upon such termination, the Promoter shall be entitled to deal with the aforementioned Apartment at its sole discretion in the manner the Promoter feels appropriate even during pendency of any claim or dispute by the Allottee/s, if any.
- 22.2 The Allottee/s further agrees and undertakes that on occurrence of such event of termination as provided in Relevant Clauses above, the Allottee/s shall return all documents (in original) with regards to this transaction to the Promoter, comply with all other requirements of the Promoter as would be required for effective termination of this Agreement including but not limited to timely execution and registration of the Deed.
- 22.3 Upon such termination, the Allottee/s agree(s) and acknowledge(s) that the Allottee(s) shall not have any right, title and/or interest in the Apartment and/or Parking Space(s)

and/or the Project and/or the Project Land and the Allottee/s waives his/her/their/its right to claim and/or dispute against the Promoter in any manner whatsoever. Further, upon such termination, the Promoter shall be entitled to deal with the aforementioned Apartment at its sole discretion.

23. ASSOCIATION / APEX BODY FORMATION:

- 23.1 Upon obtaining the Occupancy Certificate or Completion Certificate from the concerned statutory authorities for the respective Tower / Building / Project, the Promoter shall issue a Possession Intimation Letter ("**PIL**") to the Allottee subject to the Allottee having complied with all payment obligations.
- 23.2 The Owners' Association will be governed by a Deed of Declaration/ bye-laws/memorandum of articles to be executed by the Promoter and later by the Association and all owners and occupants are bound by the terms thereof without there being any right to question or modify the same.
- 23.3 The Apartment Owners shall pay and bear the proportionate maintenance charges of the Club House Amenities and landscape Outdoor Amenities immediately on issuance of PIL. The maintenance of the Project shall be taken over by the Association from the Promoter upon (1) the formation of the Association; or (2) within 3 (three) months from the date of the intimation of possession to the Allottee whichever is earlier. Otherwise, the maintenance shall be handed over by the Promoter to the Association within 6 months from date of the intimation of possession to the Association, subject to the formation of the Association. In the event Promoter continues to maintain, on the expiry of 3 (three) months from the date of handover of Apartment, the Allottee undertakes to pay the maintenance charges plus a monthly management fee which shall be decided by the promoter and will be uniformly applicable to all the allottees in the project, and applicable taxes on the management fee to Promoter for the maintenance of the Club House Amenities and landscape Outdoor Amenities that are in use and enjoyment , as demanded by the Promoter, till such time as the Owners' Association takes over the maintenance and management of the Club House Amenities and landscape Outdoor Amenities. If there is any increase in the maintenance charges being charged by the Promoter presently, such excess charges shall be proportionately borne by the Apartment Owners and recoverable by the Promoter. The formed Association shall takeover the management and governance of either the Tower / Building / Project, at the discretion of the Promoter before the expiry of the said 3 (three) months' maintenance period.
- 23.4 Notwithstanding anything contained herein, the Promoter may transfer the balance available advance maintenance charges and corpus funds collected from the customers

pursuant to the terms of this Agreement to the Association/ Apex Body. This transfer is intended to enable the Association to effectively manage and govern the Tower / Building / Project.

- 23.5 The Association shall be responsible for the maintenance, management, and governance of the Tower / Building / Project, including but not limited to Club House Amenities and landscape Outdoor Amenities maintenance, security, and compliance with statutory requirements.
- 23.6 In the event the Association is not formed within 3 (three) months from the date of PIL, the Promoter, at its own discretion, may continue to maintain the Project. The cost and fees for such maintenance shall be determined by the Promoter, and the Allottees shall pay such amounts to the Promoter until the formation and successful handing over of the said Tower / Building / Project by the Association.
- 23.7 Upon completion of the project and handover of possession to the Association, all rights, responsibilities, and liabilities pertaining to the operation, maintenance, and upkeep of the Club House Amenities and landscape Outdoor Amenities including but not limited to the Sewage Treatment Plant (STP), Water Treatment Plant (WTP), club house, and other shared facilities shall be transferred to the Association as per applicable laws.

24. ASSOCIATION STRUCTURE:

- 24.1 The Promoter shall at its discretion, as prescribed under the Relevant Laws,
- (i) Form association of the Allottee/s of apartment(s)/flat(s)/premises/units in the building(s), being either a co-operative society/condominium/limited company or combination of them (hereinafter referred to as the “**Association of Owners**”), as it may deem fit and proper in respect of each of the building(s) comprised in the Project known by such name as the Promoter may decide, which shall be responsible for maintenance and management of the Project including the Building, within such period as may be prescribed under the Relevant Laws.
 - (ii) With a view to preserve the intrinsic value of the Project by ensuring high standard of maintenance and upkeep, at its discretion but not as an obligation, be involved / undertake / conduct either by itself or through Facility Management Company (in the manner set out in this Agreement), the maintenance and management of the Project, without any reference to the Allottee/s and other occupants of the Project, even after formation of the association/Apex Body on such terms and conditions as the Promoter may deem fit and the Allottee/s hereby gives their unequivocal

consent for the same. For this purposes the Promoter may, in its discretion provide suitable provisions in the constitutional documents of the association/Apex Body.

- (iii) Make provisions for payment of outgoings/CAM to the association & the Apex Body, as the case maybe, for the purposes of maintenance of Building in which the Apartment is located and the entire Project.

- 24.2 Except the Car Park(s) allotted by the Promoter in accordance to this Agreement, the Allottee/s agree(s) and confirm(s) that all open car parking space(s) will be dealt with in accordance with the Relevant Laws. The Allottee/s hereby declare/s and confirm/s that except for the Car Park(s) allotted by the Promoter, the Allottee/s do/es not require any parking space/s including open car parking space(s) and accordingly the Allottee/s waives his/her/its/their claim, right, title, interest whatsoever on the areas of parking space(s) in the Project. The Allottee/s further agree(s) and undertake(s) that he/they/it shall have no objection/concerns towards the identification and allotment/allocation of parking space(s) done by Promoter / association / Apex Body, at any time and shall not challenge the same anytime in future. The Allottee/s agree(s) and acknowledge(s) that Promoter/the association/Apex Body shall deal with the parking space(s) in the manner association / Apex Body deems fit, subject to the terms of bye-laws and constitutional documents of the association / Apex Body / the Relevant Laws. The Promoter acknowledges and accepts the aforementioned waiver and accordingly has given effect to the same while calculating the Sale Consideration.
- 24.3 The Allottee/s agree(s) and undertake(s), to sign and execute all applications and other papers and documents, including but not limited to the bye-laws/memorandum and articles of association / Apex Body / Apex Bodies drafted/adopted by the Promoter for the association, necessary for the formation and registration of the association / Apex Body / Apex bodies within 10 (ten) days from the date of receipt of intimation by the Promoter. The Allottee/s agree(s) not to object to any changes/amendments made by the Promoter in the draft/model bye-laws/memorandum and articles of association / Apex Body / Apex Bodies for the association. The Allottee/s shall also be bound from time to time, to sign all papers, documents and deeds for safeguarding the interest of the Promoter and the other Allottee/s of apartment(s)/flat(s)/premises/units in the Building. The Allottee/s shall be bound by the rules, regulations and bye-laws/memorandum and articles of association / Apex Body / Apex Bodies and the terms and conditions contained in the Indenture. No objection shall be raised by the Allottee/s, if any changes or modifications are made in the draft bye-law of the association / Apex Body / Apex Bodies by the Promoter as the case may be or as may be required by the Registrar of Cooperative Societies or any other competent authority. The Allottee/s hereby authorize(s) the Promoter to sign and execute all such forms applications, papers and documents on his/her/their/its behalf as may be required for this purpose.

24.4 The Promoter may become a member of the association / Apex Body / Apex Bodies to the extent of all unsold and/or un-allotted apartment(s)/flat(s)/premises/units, areas and spaces in the Building.

24.5 All costs, charges and expenses including stamp duty, registration charges and expenses in connection with the preparation, stamping and execution of the governing documents of the association/society such as deed of declaration or memorandum of society or by whatever name it may be called shall be borne and paid by the association/all Allottee/s of apartments/flats/premises/units in the building/s in the same proportion as the total area of the apartments/flats/premises/units bears to the total area of all the apartment(s)/flat(s)/premises/units in the said building/s.

25. FACILITY MANAGEMENT COMPANY:

25.1 By executing this Agreement, the Allottee/s agree/s and consent/s to the appointment of Godrej Living Private Limited (GLPL), or any other agency, firm, corporate body, organization or any other person nominated by the Promoter (“**Facility Management Company**”) to manage, upkeep and maintain the Project, Building together with other buildings and the Project Land., sewerage treatment plant, garbage, disposal system and such other facilities, that the Promoter may require to install, operate and to maintain Club House Amenities and landscape Outdoor Amenities. The Allottee/s hereby agree and undertake to execute maintenance agreement with the Facility Management Company as and when called upon by the Promoter / Facility Management Company. The Facility Management Company shall also be entitled, to collect the maintenance charges, maintenance deposit, outgoings, provisional charges, taxes, levies and other amounts in respect of the Project, building(s) (including the Allottee/s’s proportionate share of the outgoings as provided under Clause 16 herein). The Promoter hereby reserves its right to remove, nominate and appoint new Facility Management Company for maintenance, upkeep, management and control of the Project, at its sole discretion, and without any concurrence from Allottee/s / association / apex body / apex bodies/common organization. It is hereby clearly clarified, agreed and understood that the Facility Management Company shall also be entitled to exercise its rights for collecting the charges and expenses mentioned herein, even after formation of the association/ society / apex body / apex bodies / common organization. The Allottee/s hereby grants his/her/their/its unequivocal and unconditional consent confirming agreement /contract/arrangement that the Promoter has or may have to enter into with the Facility Management Company (“**FM Agreement**”). It is hereby clarified that the Allottee/s agrees and authorizes the Promoter to appoint the Facility Management Company for the Project till formation of the Association or handing over of the project to the Association whichever is earlier. Post formation of the society/ association / apex

body/common organization, as the case may be, the Promoter will novate the FM Agreement in favor of the society / association / apex body/common organization, as the case may be. Post expiry of the tenure of the FM Agreement, the society / association / apex body/common organization, as the case may be, shall have the option to either continue with the Facility Management Company or appoint a new facility management company, provided that prior written consent of all the Allottee/ss of the units in the Project is obtained for deciding discontinuation/non-renewal of the FM Agreement as per the terms of such Agreement including the obligations/penalties/liabilities etc. or appointment of a new facility management company. It is further expressly understood that the Promoter shall not in any manner be accountable, liable or responsible to any person including the Allottee/s / association / apex body / apex bodies/common organization, for any act, deed, matter or thing committed or omitted to be done by the Facility Management Company in the due course of such maintenance, upkeep, management and control of the Project, Building(s) and/or common areas, amenities and facilities thereto.

- 25.2 The Allottee/s agree to promptly pay the necessary maintenance charges for the Project, including Club House Amenities and landscape Outdoor Amenities as determined by the Promoter or Facility Management Company. The Promoter will collect advance maintenance charges for a period of Two years (“**Advance Maintenance Charges**”). The Promoter may choose to handover the maintenance of the common areas, facilities, and amenities to the Association/Apex Body before the end of the 06 months period. In such an event, the Promoter will transfer the prorated charges (collected in advance) for the remaining period to the Association/Apex Body.
- 25.3 The Allottee/s further agree(s) and undertake(s) to be bound from time to time to sign and execute all papers, documents, deeds and/or other writings as may be required, at the sole discretion of the Promoter/ Facility Management Company, for the purposes of framing rules for management of the Project, its building(s)/ tower(s)/wing(s), common areas, common amenities and common facilities and use of the Apartment / car parking areas by the Allottee/s for ensuring safety and safeguarding the interest of the Allottee/s of apartment(s)/flat(s)/premises/units in the Project and the Allottee/s also agree(s) and confirm(s) not to raise any disputes/claims, whether individually or in group, in this regard, against the Promoter/Facility Management Company and/or other Allottee/s of apartment(s)/flat(s)/premises/units of the Project.

26. FIT OUT MANUAL:

- 26.1 The Allottee/s agree(s) and undertake(s) that on receipt of possession, the Allottee/s shall carry out any fit-out/interior work strictly, in accordance, with the rules and regulations framed by the Promoter/association / Apex Body (“**Fit-Out Manual**”) and

without causing any damage to the any part of the building, structure etc. or/and disturbance, to the other Allottee/s of apartment(s)/flat(s)/premises/units in the Building. The Fit-Out Manual will contain details on the applicable fit out charges and security deposit payable to start interior work at the apartment along with the guidelines for the same which will be shared at the time of handing over possession of the Apartment. Without prejudice to the aforesaid, if the Allottee/s makes any unauthorized change or alteration or causes any unauthorized repairs in or to the Apartment or the Building, the Promoter shall be entitled to call upon the Allottee/s to rectify the same and to restore the Apartment and/or Building to its original condition within 30 (thirty) days from the date of intimation by the Promoter in that behalf. If the Allottee/s does not rectify the breach within such period of 30 (thirty) days, the Promoter may carry out necessary rectification/restoration to the Apartment or the Building (on behalf of the Allottee/s) and all such costs/charges and expenses incurred by the Promoter shall be reimbursed by the Allottee/s. If the Allottee/s fail(s) to reimburse to the Promoter any such costs/charges and expenses within 7 (seven) days of demand by the Promoter, the same would be deemed to be a charge on the Apartment. The Allottee/s hereby indemnifies and agrees to always keep saved, harmless and indemnified, the Promoter (i) from and against all actions, proceedings, claims, demands, costs, charges and expenses whatsoever, which may be made against the Promoter or which the Promoter may suffer or incur as a result of any unauthorized change or alteration in or causing any unauthorized repairs in or to the Apartment or the Building and (ii) for all costs and expenses incurred by the Promoter for instituting any legal proceedings for recovery of such costs/charges and expenses incurred by it for rectification/restoration to the Apartment or the Building.

- 26.2 Upon the possession of the Apartment being delivered to the Allottee/s, the Allottee/s shall be deemed to have granted a license to the Promoter, its engineers, workmen, labourers or architects to enter upon the Apartment by reasonable notice in writing or in case of emergency without notice, for the purpose of rectifying any defect or damage to the Building or if necessary any part of the Apartment provided the Apartment is restored to the same condition, as far as possible, after the restoration work or rectification of the defect or damage caused due to any act of commission or omission of the Allottee/s or his agents and the Allottee/s shall reimburse and/or pay to the Promoter or any other person the loss or damage suffered by them on account of the act of the Allottee/s or his agents. The Promoter shall not be liable for any theft or loss or inconvenience caused to the Allottee/s on account of entry to the Apartment as aforesaid. If the Apartment is closed and in the opinion of the Promoter any rectification or restoration is necessary in the interest of the Building and/or Allottee/ss therein, the Allottee/s consent(s) to the Promoter to break open the lock on the main door/entrance of the Apartment and the Promoter shall not be liable for any loss, theft or inconvenience caused to the Allottee/s on account of such entry into the Apartment.

27. REPRESENTATIONS AND WARRANTIES OF THE PROMOTER:

27.1 The Promoter hereby represents and warrants to the Allottee/s to the best of its knowledge as on date as follows:

- (i) The Promoter has clear and marketable title with respect to the Project land and has the requisite rights to carry out development upon the Project land and also has actual, physical and legal possession of the Project land for the implementation of the Project;
- (ii) The Promoter has lawful rights and requisite approvals from the competent authorities to carry out development of the Project and shall obtain requisite approvals from time to time to complete the development of the Project;
- (iii) There are no encumbrances upon the Apartment or Project land or the Project except those disclosed in the Title Search Report;
- (iv) There are no litigations pending before any Court of law with respect to the Project land or the Project except those disclosed in the title report and the RERA website;
- (v) The Promoter has been and shall, at all times, remain to be in compliance with the Relevant Laws in relation to the Project, Project Land, Building and Club House Amenities and landscape Outdoor Amenities;
- (vi) The Promoter has the right to enter into this Agreement and has not committed or omitted to perform any act or thing, whereby the right, title and interest of the Allottee/s created herein, may prejudicially be affected;
- (vii) The Promoter has not entered into any agreement for sale and/or development agreement or any other agreement / arrangement with any person or party with respect to the Project Land and Apartment including the Project and the Apartment which will, in any manner, adversely affect the rights of Allottee/s under this Agreement;
- (viii) The Promoter confirms that the Promoter is not restricted in any manner whatsoever from selling the Apartment to the Allottee/s in the manner contemplated in this Agreement;
- (ix) At the time of execution of the conveyance deed in favour of the Allottee/s, the Promoter shall handover lawful, vacant, peaceful, physical possession of the Apartment to the Allottee/s;
- (x) The Promoter has duly paid and shall continue to pay and discharge the undisputed governmental dues, rates, charges and taxes and other monies, levies, impositions, premiums, damages and/or penalties and other outgoings, whatsoever, post obtaining the occupancy certificate/completion certificate, as the case may be, payable with respect to the said Project to the competent

authorities at the cost and expense of the Allottee/s till the date of handing over of the Project to the Association of Owners/Apex Body/ies;

- (xi) No notice from the Government or any other local body or authority or any legislative enactment, government ordinance, order, notification (including any notice for acquisition or requisition of the said property) has been received or served upon the Promoter in respect of the Project Land and/or the Project except those disclosed in the title report.

28. IT IS CLEARLY UNDERSTOOD AND AGREED BY THE PARTIES THAT :

- 28.1 The Promoter reserves to itself the unfettered right to the full, free and complete right of way and means of access over, along and under all the internal access roads in the Project land and any common rights of ways with the authority to grant such rights to the Allottee/s and/or users of apartment(s)/flat(s)/premises/units in the Building being constructed on the Project land (present and future) at all times and the right of access to the Project land for the purpose of installing, repairing, maintaining and inspecting the ancillary structures such as pump rooms, motor rooms, watchman rooms, sewage treatment plant, underground tanks, substation of power supply company etc. situated on the Project land and also to lay and connect drains, pipes, cables and other service lines and amenities (including underground and overhead), other amenities necessary for the full and proper use and enjoyment of the Project land and if necessary to connect the drains, pipes, cables etc. under, over or along the Project land appurtenant to each and every building to be constructed on the Project land (including the Building) without in any way obstructing or causing nuisance to the ingress and egress of the Allottee/s /other occupants of apartment(s)/flat(s)/premises/units in building constructed on the Project land till such time the Project land is handed over to the Association of Owners/Apex Body.
- 28.2 Necessary provisions for the above shall be made in the transfer documents such as deeds of transfer/assignment/declaration/deeds of Apartment to be executed in respect of the sale/transfer of apartment(s)/flat(s)/premises/units in the buildings to be constructed on the Project land. The Allottee/s hereby expressly consents to the same.
- 28.3 The Allottee/s shall co-operate with the Promoter in all the future developments that the Promoter may undertake in addition to the Project, which may or may not be integrated with the Project. The Allottee/s shall not hinder or obstruct such future development in any manner whatsoever and the Promoter shall have unfettered right to access/ use the Project land free of cost, for the purpose of such future development. In the event, the future development/other phase/s of the Promoter is integrated with the Project, the residents of such future development shall have unfettered right to the

facilities and amenities including services such as sewage treatment plant, water treatment plant, DG set and such other services which may be located within the Project land at par with the residents of the Project and *vice-versa*, subject to technical feasibility of such usage and further subject to the rules and regulations of the Association along with a resolution passed by Board of the Association to such effect. For clarity, the amenities, facilities and services falling in completed phases to which the Allottee/s shall be entitled to use/access may be operational and already being maintained by the Promoter/facility management company/the existing or ad-hoc association and the Allottee/s shall not object to the same.

- 28.4** It is clarified that for the Project there is no provision to drain out the storm water from the Project. Therefore, in case of requirement of draining out of the storm water from the Project, the cost associated for the same shall be borne by the Apartment Owners and paid along with the Maintenance Charges as may be applicable after issuance of Possession Intimation Letter.

29. BRAND NAME & PROJECT NAME:

- 29.1 It is agreed by the Allottee/s that the name of the Project or of the individual building/s may be changed at the sole discretion of the Promoter in accordance to the Relevant Laws.
- 29.2 It is further agreed by the Allottee/s that the association of the brand name “**Godrej**” (in its registered logo form) or a combination of words with prefix as “**Godrej**” shall at all times be subject to the sole control of the Promoter. It is agreed and accepted by the Allottee/s that the Brand Name shall always be used with the written permission of the proprietor of the Brand Name in the form in which it is registered with the concerned authorities and the color combination, the design; the appearance shall not be changed under any circumstances, unless the Promoter has itself informed in writing about any change in the logo/Brand Name. The Brand Name will be associated with the Project including Project land and the Building. However, it shall be the sole discretion of the Promoter to associate its name / Brand name with the association / Apex Body / Apex Bodies (which would be formed gradually), on such terms and conditions as may deem fit by Promoter. It is further agreed that the association of the Brand Name shall not, under any circumstances, be construed as a license or any other interest granted to any person in the Brand Name and all intellectual property rights in and arising out of or connected with the Brand Name and ownership of the Brand Name shall at all times vest in and be held exclusively by the Promoter. The Allottee/s further agree/s to not use the Brand Name and/or any intellectual property in the Brand Name in any manner and for any purpose whatsoever except as otherwise permitted by Promoter. The Allottee/s and the association / Apex Body / Apex Bodies of the Apartment Allottee/ss

shall not be entitled to change the name of the Project / Building/s without written consent of Promoter.

30. REPRESENTATIONS BY THE ALLOTTEE:

The Allottee/s acknowledge(s), agree(s) and undertake(s) that the Allottee/s shall neither hold the Promoter/Development Manager or any of its sister concerns/ affiliates liable/ responsible for any representation(s)/ commitment(s)/offer(s) made by any third party to the Allottee/s nor make any claims/demands on the Promoter/Development Manager or any of its sister concerns/ affiliates with respect thereto.

The Allottee acknowledges that as part of this transaction, they may have access to confidential information regarding the Promoter, including but not limited to project designs, pricing strategies, marketing plans, financial information, or terms of this Agreement ("Confidential Information"). The Allottee hereby undertakes to Keep all such Confidential Information strictly confidential and secret.

The Allottee undertakes, both during the term of this Agreement and thereafter or the completion of the project, to refrain from making, publishing, or causing to be made or published, any oral or written statement, including on social media platforms, websites, or public forums, that is (a) Defamatory, libelous, slanderous, or injurious to the reputation, business, or image of the Promoter, its directors, employees, or affiliates (b) Maliciously intended to damage the project's reputation or cause financial loss to the Promoter. However, nothing in this clause shall restrict the Allottee/s from providing truthful information to a government authority, court of law, or during a legal proceeding initiated to enforce the terms of this Agreement.

The Allottee acknowledges that a breach of this clause will cause irreparable harm to the Promoter, for which monetary damages may be difficult to ascertain. Therefore, the Promoter shall be entitled to seek injunctive relief, in addition to any other remedies available at law, including claiming liquidated damages for each breach, without prejudice to the right to claim higher damages if actual damage exceeds this amount.

31. TRANSFER/ASSIGNMENT BY THE ALLOTTEE:

Only after (i) payment of minimum 50% (fifty percent) of the Sale Consideration by the Allottee/s or (ii) a term of 1½ (one and a half) years (i.e. eighteen months) has elapsed from the date of Allotment Letter in respect of the Apartment, whichever is later, the Allottee/s may transfer his rights, title and interest in the Apartment under this Agreement to any third person / entity after obtaining prior written consent of the Promoter. Any such transfer by the Allottee/s shall be subject to the terms and

conditions of this Agreement, Relevant Laws, notifications/ governmental directions, the Allottee/s submitting documentary proof as may be required by the Promoter, payment of the monies due and payable by the Allottee/s under this Agreement and payment of applicable transfer / administrative fee of ₹250/- (Rupees Two Hundred and Fifty only only) per square feet plus taxes as applicable on the Total Carpet Area of the Apartment to the Promoter. On such transfer recorded / endorsed by the Promoter, the Allottee/s along with third party transferee shall furnish requisite undertakings and indemnities, as may be required by the Promoter, to abide by all the terms and conditions of this Agreement. The Allottee/s shall solely be liable and responsible for all legal and other consequences that may arise due to acceptance of application for such transfer/ assignment.

32. OBLIGATIONS, COVENANTS, REPRESENTATIONS OF PURCHASER/S:

32.1 The Allottee/s or himself/themselves with intention to bring all persons into whosoever hands the Apartment may come, hereby covenants, represents with the Promoter as follows :-

- (i) To maintain the Apartment at the Allottee/s's own cost in good and tenantable repair and condition from the date of possession of the Apartment is taken and shall not do or suffer to be done anything in or to the building in which the Apartment is situated which may be against the rules, regulations or bye-laws or change/alter or make addition in or to the building in which the Apartment is situated and the Apartment itself or any part thereof without the consent of the local authorities, if required.
- (ii) Not to store in the Apartment any goods which are of hazardous, combustible or dangerous nature or are so heavy as to damage the construction or structure of the building in which the Apartment is situated or storing of which goods is objected to by the concerned local or other authority and shall take care while carrying heavy packages which may damage or likely to damage the staircases, common passages or any other structure of the building in which the Apartment is situated, including entrances of the building in which the Apartment is situated and in case any damage is caused to the building in which the Apartment is situated or the Apartment on account of negligence or default of the Allottee/s in this behalf, the Allottee/s shall be liable for the consequences of the breach.
- (iii) Not to put any sign-board / name-plate, neon light, publicity material or advertisement material etc. on the face / facade of the Building or anywhere on

the exterior of the Project, buildings therein or Club House Amenities and landscape Outdoor Amenities.

- (iv) To carry out at his own cost all internal repairs to the said Apartment and maintain the Apartment in the same condition, state and order in which it was delivered by the Promoter to the Allottee/s and shall not do or suffer to be done anything in or to the building in which the Apartment is situated or the Apartment which may be contrary to the rules and regulations and bye-laws of the concerned local authority or other public authority. In the event of the Allottee/s committing any act in contravention of the above provision, the Allottee/s shall be responsible and liable for the consequences thereof to the concerned local authority and/or other public authority.
- (v) Not to demolish or cause to be demolished the Apartment or any part thereof, nor at any time make or cause to be made any addition or alteration of whatever nature in or to the Apartment or any part thereof, nor any alteration in the elevation and outside colour scheme of the building in which the Apartment is situated nor shall demand partition of the Allottee/s's interest in the Apartment and shall keep the portion, sewers, drains and pipes in the Apartment and the appurtenances thereto in good tenantable repair and condition, and in particular, so as to support shelter and protect the other parts of the building in which the Apartment is situated and shall not chisel or in any other manner cause damage to columns, beams, walls, slabs or RCC or other structural members in the Apartment without the prior written permission of the Promoter and/or the society or the limited company.
- (vi) Not to do or permit to be done any act or thing which may render void or voidable any insurance of the Project land and the building in which the Apartment is situated or any part thereof or whereby any increased premium shall become payable in respect of the insurance.
- (vii) Not to throw dirt, rubbish, rags, garbage or other refuse or permit the same to be thrown from the said Apartment in the compound or any portion of the Project land and the building in which the Apartment is situated.
- (viii) That the dry and wet garbage shall be separated and the wet garbage generated in the Building shall be treated separately on the Project land by the residents/occupants of the Building.
- (ix) Pay to the Promoter within fifteen days of demand by the Promoter, his share of security deposit demanded by the concerned local authority or Government or

giving water, electricity or any other service connection to the Building in which the Apartment is situated.

- (x) To bear and pay increase in local taxes, water charges, insurance and such other levies, if any, which are imposed by the concerned local authority and/or Government and/or other public authority, on account of change of user of the Apartment by the Allottee/s for any purposes other than for the purpose for which it is sold.
- (xi) Not cause any nuisance, hindrance, disturbance and annoyance to other Allottee/ss of apartment(s)/flat(s)/premises/units in the Building or other occupants or users of the Building, or visitors to the Building, and also occupiers of any adjacent, contiguous or adjoining properties;
- (xii) Permit the Promoter and their surveyors and agents with or without workmen and others at all reasonable times to enter into and upon the Apartment or any part thereof, to view and examine the state and condition thereof or to repair the same, at the cost of the Allottee/s;
- (xiii) Not to cover or enclose in any manner whatsoever, the open terrace/s, the open balcony/ies, verandah, car parking space/s or other open spaces forming a part or appurtenant to the Apartment/s in the Building, without the prior written permission of the Promoter/association/concerned authorities;
- (xiv) After possession date of the Apartment is communicated the Allottee/s may insure the Apartment from any loss, theft, damage caused due to human intervention or due to any act of god or other force majeure incident including fire, riot, strikes, earthquakes, natural calamity or any other cause beyond reasonable human control, and the Promoter shall not be responsible for any loss/damage suffered thereafter.
- (xv) The Allottee/s and/or the Promoter shall present this Agreement as well as the conveyance and/or any other document as may be required, in accordance to the provisions of the Registration Act, 1908.
- (xvi) The Allottee/s shall not let, sub-let, transfer, assign or part with interest or benefit factor of this Agreement or part with the possession of the Apartment until all the dues payable by the Allottee/s to the Promoter under this Agreement are fully paid up.
- (xvii) The Allottee/s shall observe and perform all the rules and regulations which the society or the limited company or Apex Body or federation may adopt at its inception and the additions, alterations or amendments thereof that may be made from time to time for protection and maintenance of the said building and the Apartments therein and for the observance and performance of the Building rules, regulations and bye-laws for the time being of the concerned local authority and of Government and other public bodies. The Allottee/s shall also observe and perform all the stipulations and conditions laid down by the society/limited company/Apex Body/federation regarding the occupancy and use of the

Apartment in the Building and shall pay and contribute regularly and punctually towards the taxes, expenses or other out-goings in accordance with the terms of this Agreement.

- (xviii) For maintenance and upkeep of the Project and the buildings forming part thereof in favour of society/limited society, the Promoter and their surveyors and agents, with or without workmen and others, shall at all reasonable times, be entitled to enter into and upon the said buildings or any part thereof to view and examine the state and condition thereof.
- (xix) Usage of Apartment Areas & Car Parks by Allottee/s: The Allottee/s agree(s) to use the Apartment or any part thereof or permit the same to be used only for the purpose of residence only. The Allottee/s further agree(s) to use the garage or parking space only for the purpose of keeping or parking car/vehicle
- (xx) The Allottee/s hereby confirms/s and acknowledge/s that the specifications mentioned in the advertisement/communications or the sample Apartment / mock Apartment and its colour, texture, the fitting(s) / fixture(s) or any installations depicted therein are only suggested and the same are not intended to be provided as a standard specifications and/or services or cannot be construed as the same. The Allottee/s has/have not relied on the same for his/her/their/its decision to acquire the Apartment in the Project and also acknowledges that the Allottee/s has/have seen all the sanctioned Building Plans and the time schedule of completion of the Project.
- (xxi) The Allottee/s undertakes that the Allottee/s has/have taken the decision to purchase the Apartment in the Project out of his/her/their own free will, based solely upon the information provided along with the documents enclosed, after giving careful consideration to the nature and scope of the entire development explained to the Allottee/s by the Promoter in person including the disclosures contained herein and on the basis of the specifications, locations, quality, services, etc. contained in this Agreement.
- (xxii) Save and except the information / disclosure contained herein the Allottee/s confirm/s and undertake/s not to make any claim against Promoter or seek cancellation of the Apartment or refund of the monies paid by the Allottee/s by reason of anything contained in other information / disclosure not forming part of this Agreement including but not limited to publicity material / advertisement published in any form or in any channel.
- (xxiii) The Allottee/s agrees and undertakes that the Promoter shall not be responsible in any manner whatsoever in case of any attachment or other proceedings that may be made or taken in respect of the Apartment and/or Car Park(s) by concerned authorities due to non-payment by the Allottee/s or any other Apartment Allottee/s of their respective proportion of the taxes / outgoings payable to the concerned authorities on account of default in making such payments.

- (xxiv) Not to object to any future development/other phases as may be undertaken by the Promoter in the Schedule A Property/ Project land adjacent and/or surrounding the Project land. The Allottee/s hereby specifically consents to co-operate with the Promoter towards facilitating any future development/other phases undertaken by the Promoter in the Schedule A Property/ Project land adjacent and/or surrounding the Project land. The Allottee/s hereby consents for integration of infrastructure with such future development in the manner as may be solely decided by the Promoter. The Allottee/s agrees and confirms that the Promoter shall exercise absolute discretion in terms of planning and installing the infrastructural and other services in the Project and future development/other phases in the Schedule A Property.
- (xxv) To comply with all the terms and conditions as mentioned in this Agreement including but not limited to payment of all such amounts within the timelines stipulated under this Agreement or as and when demanded by the Promoter.
- (xxvi) Not to cause any nuisance, disturbance and annoyance with an intension to defame and/or malign the goodwill or brand of the Promoter in any manner including publishing hate and/or false statements on any public forum or group.

33. OBLIGATIONS OF THE PROMOTER:

Promoter's obligation for obtaining occupancy certificate (OC): The Promoter hereby agrees to comply with the Relevant Laws and, shall, before offering possession of the Apartment to the Allottee/s, obtain from the concerned local authority occupancy and/or completion certificates in respect of the Apartment.

34. HOARDING RIGHTS:

The Allottee/s hereby consents that the Promoter may and shall always continue to have the right to place/erect hoarding/s on the Project land/anywhere in the Building or on top of it, of such nature and in such form as the Promoter may deem fit and the Promoter shall deal with such hoarding spaces at its sole discretion until conveyance of the Project land to the association / Apex Body and the Allottee/s agree/s not to dispute or object to the same. The Promoter shall not be liable to pay any fees / charges to the association / Apex Body for placing / putting up the hoarding/s; provided that if any municipal taxes become payable for such use, then the same shall be borne and paid by the Promoter and/or by the transferee (if any).

35. RETENTION:

The Promoter may, either by itself and/or its nominees/associates/affiliates also retain some portion / units/ Apartments in the Project at its sole discretion, which may be subject to different terms of use, including as a guest house / corporate Apartments.

36. UNSOLD APARTMENT:

- (i) All unsold and/or un-allotted apartment(s)/flat(s)/premises/units, areas and spaces in the Project, including without limitation, parking spaces and other spaces in the basement and anywhere else in the Building and/or the Project land shall always belong to and remain the property of the Promoter at all times and the Promoter shall continue to remain in overall possession of such unsold and/or un-allotted apartment(s)/flat(s)/premises/units and shall be entitled to enter upon the Project land and the Building to enable it to complete any unfinished construction work and to provide amenities and facilities as the Promoter may deem necessary.
- (ii) The Promoter shall without any reference to the Allottee/s, association / Apex Body, be at liberty to sell, let, sub-let, dispose of or otherwise deal with in any manner whatsoever all such unsold and/or un-allotted apartment(s)/flat(s)/premises/units and spaces therein, as it deems fit. The Promoter shall be entitled to enter in separate agreements with the Allottee/ss of different apartment(s)/flat(s)/premises/units in the Building on terms and conditions decided by the Promoter in its sole discretion and shall without any delay or demur enroll the new Allottee/s as member/s of the association / Apex Body. The Allottee/s and/or the association / Apex Body shall not claim any reduction in the Sale Consideration, other charges payable under this Agreement and/or any damage on the ground of inconvenience and/or nuisance or on any other ground whatsoever. Further, the Promoter shall not be liable to pay / contribute any amount on account of non-occupancy charges or for any other charges / fund provided for under the bye-laws, rules and regulations or resolutions of the association / Apex Body.
- (iii) The Promoter reserves the right to use available space within unsold apartments as its office/s and the right to use and access the Schedule A Property and to sell and market the remaining unsold apartments / inventory in the Project. This access shall be uninterrupted and available in line within permitted business hours. The Promoter shall obtain and keep valid the necessary permissions in order to utilize the available space within the unsold apartments.

37. BASEMENT/PODIUMS:

The Allottee/s hereby consents to the Promoter dividing the basement into car parking spaces, store rooms, storage spaces and any other areas as may be decided by the Promoter. The Promoter shall be entitled to allot, grant a right to use of, sell, let, sub-let, dispose of or otherwise deal with in any manner whatsoever such spaces and areas in the Project to the extent permissible under the Relevant Laws.

38. ASSIGNMENT BY THE PROMOTER:

The Promoter may at any time assign or transfer (by way of mortgage, sale or otherwise), in whole or in part, its rights and obligations in respect of the Project in accordance with the Relevant Laws. On such transfer, the assignee or transferee of the Promoter shall be bound by the terms and conditions herein contained.

39. ADDITIONAL CONSTRUCTION:

The Allottee/s hereby consents that the Promoter shall be entitled to construct any additional area/structures in the Project land as the Promoter may deem fit and proper and the Promoter shall, at its sole discretion, deal with and/or dispose of the same without any reference to the Allottee/s and/or the association / Apex Body, upon its formation/registration, as the case may be, in accordance with the terms of the Relevant Laws and the Allottee/s agrees not to dispute or object to the same. The right hereby reserved shall be available to the Promoter until the complete optimization of the Schedule A Property.

40. MORTGAGE & SECURITY

The Promoter if it so desires shall be entitled to create security on the Project land together with the building/s being constructed thereon (including the Building) by availing loans/financial assistance/credit facilities from banks/financial institutions, against securities thereof, save and except the Apartment allotted hereunder. The Promoter shall be entitled to and be at liberty to sign mortgage deeds, loan agreements and other documentation whether legal or in English form or by way of deposit of title deeds, save and except the Apartment, provided the Promoter shall be the principal debtor and it shall be the sole responsibility of the Promoter to repay such loan amount with interest, charges and expenses thereon, in any case on or before the assignment/transfer of the Project land (or any part thereof) and building/s constructed thereon in favour of the association / Apex Body in accordance with the terms of this Agreement. The Allottee/s hereby gives express consent to the Promoter to raise such financial facilities against security of the Project land together with the building(s)

being constructed thereon (including the Building) and mortgage the same with banks/financial institutions as aforesaid, save and except the Apartment agreed to be transferred hereunder. such mortgage or charge shall not affect the rights and interest of the Allottee who has taken or agreed to take such [Apartment/Building].

41. APPOINTMENT OF VENDORS FOR INTERNET AND CABLE FACILITY:

The Promoter has informed the Allottee/s and the Allottee/s is/are aware & agree that in order to provide a common and better quality service the Promoter shall decide on the specifications and a vendor for providing T.V./Internet connection in the Building and other buildings constructed / to be constructed upon the Project land. The aforesaid rights are retained by the Promoter to itself and the Promoter shall be entitled to deal with and dispose of and/or assign the said rights in favour of such person or corporate body as the Promoter may determine. The consideration received for such assignment shall belong to the Promoter alone. The Allottee/s and/or occupants of apartment(s)/flat(s)/premises/units in the Building and/or the association / Apex Body / Apex Bodies shall pay the charges (including deposits) as may be charged by the Promoter and/or such assignee(s) as aforesaid for availing the transmission facilities and network as aforesaid and shall give to them all necessary co-operation of enabling them install, maintain and repair the equipment thereof and shall not be entitled to charge the Promoter and/or their assignee(s) as aforesaid any amount for the said rights or incidental thereto. The aforesaid rights and obligations shall stand transferred in favour of the Association/ Apex Body upon its formation.

42. RIGHT OF ALLOTTEE/S TO THE APARTMENT AND CLUB HOUSE AMENITIES AND LANDSCAPE OUTDOOR AMENITIES:

Nothing contained in this Agreement is intended to be nor shall be construed as a grant, demise or assignment in law, of the said Apartment or of the Project land and the Building or any part thereof. The Allottee/s shall have no claims in the Common Areas including but not limited to all open spaces, parking spaces, lobbies, staircases, terraces recreation spaces and the same shall remain the property of the Promoter until the Building/Project land is handed over to the Association/Apex Body as per the terms of this Agreement and in accordance with the provisions of the Act and the Relevant Laws.

43. APARTMENT OWNERSHIP ACT:

The Promoter has assured the Allottee/s that the Promoter shall submit the **Schedule A Property** to the provisions of the Karnataka Apartment Ownership Act, 1972 or under any relevant applicable law.

44. ENTIRE AGREEMENT

This Agreement contains the whole agreement between the Parties in respect of the subject matter and shall not be modified (whether by alteration, addition or omission) otherwise than by writing duly signed by all the Parties. This Agreement constitutes the entire understanding / agreement between the Parties and there are no promises or assurances or representations, oral or written, express or implied, other than those contained in this Agreement. The Allottee/s hereby expressly admits acknowledges and confirms that no terms, conditions, particulars or information, whether oral, written or otherwise, given or made or represented by the Promoter and/or its agents to the Allottee/s and/or his agents, including those contained/given in any advertisement or brochure or publicity materials, other than such terms, conditions and provisions contained herein shall be deemed to form part of this Agreement or to have induced the Allottee/s in any manner to enter into this Agreement. This Agreement supersedes all previous arrangement, agreement, exchange of documents including marketing materials brochures etc.

45. PROVISIONS OF THIS AGREEMENT APPLICABLE TO THE ALLOTTEE/S / SUBSEQUENT ALLOTTEE/S

It is clearly understood and so agreed by and between the Parties hereto that all the provisions contained herein and the obligations arising hereunder in respect of the Project shall equally be applicable to and enforceable against any subsequent Allottee/s of the Apartment, in case of a transfer, as the said obligations go along with the Apartment for all intents and purposes.

46. SEVERABILITY

Any provision of this Agreement which is prohibited, unenforceable or is declared or found to be illegal, unenforceable or void shall, be ineffective only to the extent of such prohibition or unenforceability without invalidating the remainder of such provision or the remaining provisions of this Agreement or affecting the validity or enforceability of such provision in any other jurisdiction. If any such prohibition or unenforceability substantially affects or alters the residual terms and conditions of this Agreement, the Parties shall negotiate in good faith to amend and modify the provisions and terms of this Agreement as may be necessary or desirable in the circumstances to achieve, as closely as possible, the same terms, covenants and conditions as were there in this Agreement prior to such prohibition or unenforceability.

47. WAIVER

Any delay tolerated or indulgence shown by the Promoter, in enforcing the terms, conditions, covenants, stipulations and/or provisions of this Agreement, or any forbearance, or giving of time, to the Allottee/s by the Promoter, shall not be treated/construed /considered, as a waiver or acquiescence on the part of the Promoter of any breach, violation, non-performance or non-compliance by the Allottee/s of any of the terms, conditions, covenants, stipulations and/or provisions of this Agreement, nor shall the same in any manner prejudice, the rights/remedies of the Promoter.

48. METHOD OF CALCULATION OF PROPORTIONATE SHARE WHEREVER REFERRED TO IN THE AGREEMENT

Wherever in this Agreement it is stipulated that the Allottee/s has to make any payment, in common with other Allottee/s in Project, the same shall be in proportion to the Carpet Area of the Apartment to the total carpet area of all the apartment(s)/flat(s) in the Project.

49. FURTHER ASSURANCES

Both Parties agree that they shall execute, acknowledge and deliver to the other such instruments and take such other actions, in additions to the instruments and actions specifically provided for herein, as may be reasonably required in order to effectuate the provisions of this Agreement or of any transaction contemplated herein or to confirm or perfect any right to be created or transferred hereunder or pursuant to any such transaction.

50. PLACE OF EXECUTION

The execution of this Agreement shall be complete only upon its execution by the Allottee/s and the Promoter through its authorized signatory of the Promoter and this Agreement shall be deemed to have been executed at Bengaluru.

51. NOTICES

- 51.1 Any notice, demand or other communication including but not limited to the Allottee/s's default notice to be served under this Agreement may be served upon any Party by registered post and/or through speed post at the respective address specified hereinabove, or through e-mail or at such other address as it may from time to time be notified in writing to the other Party.

- 51.2 In case of more than one Allottee/s, default notice, letters, receipts, demand notices to be served under this Agreement may be served upon to the first mentioned Allottee/s onto the above mentioned address or any address later notified by the first mentioned Allottee/s and the same shall be a sufficient proof of receipt of default notice, letters, receipts, demand notices and other communication by all the Allottee/s and the same shall fully and effectively discharge the Promoter of its obligation in this regard.
- 51.3 In case of change of address of the Allottee/s, the same shall be informed to the Promoter well in advance by the Allottee/s failing which all communications and letter posted at the above address shall be deemed to have been received by the Allottee/s.

52. **JOINT ALLOTTEE/S:**

That in case there are Joint Allottee/s all communications shall be sent by the Promoter to the Allottee/s whose name appears first and at the address given by him/her/them which shall for all intents and purposes to consider as properly served on all the Allottee/s. In the case of Joint Allottee/s for the Apartment, unless a duly executed instruction by all such Joint Allottee/s is provided to the Promoter at the time of termination, all payments/ refund to be made by the Promoter to the Allottee/s under the terms of the transaction documents, upon termination, shall be made to the first mentioned Allottee/s, which payment/refund shall be construed to be a valid discharge of all liabilities towards all such joint Allottee/s.

53. **SATISFIED WITH THE PROMOTER'S TITLE:**

The Allottee/s hereby declare/s that he/she/they/it has gone through this Agreement and all the documents relating to the Project land/Building and has expressly understood the contents, terms and conditions of the same and the Promoter has entered into this Agreement with the Allottee/s relying solely on the Allottee/s agreeing, undertaking and covenanting to strictly observe, perform, fulfill and comply with all the terms and conditions, covenants, stipulations, obligations and provisions contained in this Agreement and on part of the Allottee/s to be observed, performed and fulfilled and complied with and therefore, the Allottee/s hereby jointly and severally (as the case may be) agree/s, undertake/s and covenant/s to indemnify, save, defend and keep harmless at all times hereafter, the Promoter and their successors and assigns from and against all costs, charges, expenses, losses, damages, claims, demands, suits, actions, proceedings, prosecutions, fines, penalties and duties which they or any of them may have to bear, incur or suffer and/or which may be levied or imposed on them or any of them, by reason or virtue of or arising out of any breach, violation, non-observance, non-performance or non-compliance of any of the terms, conditions, covenants, stipulations and/or provisions hereof by the Allottee/s.

54. **BINDING EFFECT:**

Executing this Agreement with the Allottee/s by the Promoter does not create a binding obligation on the part of the Promoter until the Allottee/s appear/s for registration of this Agreement before the concerned sub-registrar as and when intimated by the Promoter.

55. **STAMP DUTY AND REGISTRATION CHARGES**

The charges towards stamp duty and registration charges on this Agreement shall be borne by the Allottee/s only.

56. **RIGHT TO AMEND:**

This Agreement may only be amended through written consent of the Parties.

57. **ARBITRATION**

In case the Parties are unable to settle their disputes within 15 days of intimation of dispute by either Party, the Parties shall in the first instance, if permitted under Relevant Laws, have the option to settle through arbitration in accordance with the procedure laid down under the Relevant Laws. Costs of arbitration shall be shared equally by the parties. The award of the Arbitrator shall be final and binding on the parties to the reference. The arbitration proceedings shall be conducted in English only and be held at an appropriate location in Bangalore.

58. **GOVERNING LAW**

That the rights and obligations of the Parties under or arising out of this Agreement shall be construed and enforced in accordance with the laws of India for the time being in force and the courts at Bangalore will have the jurisdiction for this Agreement. Further, all the terms & conditions, rights and obligations of the parties as contained hereunder shall be subject to the provisions of Real Estate (Regulation and Development) Act, 2016 (“**Act**”) and the Rules and Regulations made thereunder (“**Rules and Regulations**”) and the exercise of such rights and obligations shall be subject to the provisions of the Act and the Rules and Regulations made thereunder. Any change so prescribed by the Act shall be deemed to be automatically included in this Agreement and similarly any such provision which is inconsistent or contradictory to the Act shall not have any effect.

SCHEDULE 'A'
DESCRIPTION OF LARGER PROPERTY

ITEM No. 1

All that piece and parcel of property bearing **Sy.No.27/8**, measuring an extent **17.8 Guntas**, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Land in Survey No.27/1,
West by : Land in Survey No.27/7,
North by : Land in Survey No.28,
South by : Land in Survey No.27/1.

ITEM No. 2

All that piece and parcel of property bearing **Sy.No.29/3**, measuring an extent **25 Guntas**, excluding **01 Guntas Kharab** Land, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Road,
West by : Land in Survey No.29/2,
North by : Kommasandra – Sarjapura Road
South by : Land in Survey No.28/1.

ITEM No. 3

All that piece and parcel of property bearing **Sy.No.28/1**, measuring an extent **01 Acre 38 Guntas**, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Road,
West by : Land in Survey No.28/3
North by : Land in Survey No.29
South by : Land in Survey No.27.

ITEM No. 4

All that piece and parcel of property bearing **Sy.No.27/1**, measuring an extent **02 Acre 13.8 Guntas**, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Remaining Land in Sy.No.27,
West by : Land in Survey No.27/8 & Kommasandra Village

Boundary
North by : Remaining Land in Survey No.28,
South by : Kada Agrahara & B. Hosahalli Village Boundary

ITEM No. 5

All that piece and parcel of property bearing **Sy.No.27/3**, measuring an extent **01 Acre 14.8 Guntas**, excluding **08 Guntas Kharab** Land, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Road,
West by : Land in Survey No.27/1,
North by : Land in Survey No.27/2,
South by : Land in Survey No.27/5,

ITEM No. 6

All that piece and parcel of property bearing **Sy.No.27/5**, measuring an extent **01 Acre 14.8 Guntas**, excluding **06 Guntas Kharab** Land, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Road,
West by : Land in Survey No.27/1,
North by : Land in Survey No.27/3,
South by : Kada Agrahara & B.Hosahalli Village Boundary.

ITEM No. 7

All that piece and parcel of property bearing **Sy.No.27/2**, measuring an extent **0.08 (½ Guntas)**, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Road,
West by : Land in Survey No.27/1,
North by : Land in Survey No.28/1,
South by : Land in Survey No.27/3.

SCHEDULE 'B'

ITEM No. 1

All that piece and parcel of property bearing **Sy.No.27/8**, measuring an extent **17.8 Guntas**, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by	:	Land in Survey No.27/1,
West by	:	Land in Survey No.27/7,
North by	:	Land in Survey No.28,
South by	:	Land in Survey No.27/1.

ITEM No. 2

All that piece and parcel of property bearing **Sy.No.29/3**, measuring an extent **25 Guntas**, excluding **01 Guntas Kharab** Land, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by	:	Road,
West by	:	Land in Survey No.29/2,
North by	:	Kommasandra – Sarjapura Road
South by	:	Land in Survey No.28/1.

ITEM No. 3

All that piece and parcel of property bearing **Sy.No.28/1**, measuring an extent **01 Acre 38 Guntas**, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by	:	Road,
West by	:	Land in Survey No.28/3
North by	:	Land in Survey No.29
South by	:	Land in Survey No.27.

ITEM No. 4

All that piece and parcel of property bearing **Sy.No.27/1**, measuring an extent **02 Acre 13.8 Guntas**, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by	:	Remaining Land in Sy.No.27,
West by	:	Land in Survey No.27/8 & Kommasandra Village Boundary
North by	:	Remaining Land in Survey No.28,

South by : Kada Agrahara & B. Hosahalli Village Boundary

ITEM No. 5

All that piece and parcel of property bearing **Sy.No.27/3**, measuring an extent **01 Acre 14.8 Guntas**, excluding **08 Guntas Kharab** Land, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Road,
West by : Land in Survey No.27/1,
North by : Land in Survey No.27/2,
South by : Land in Survey No.27/5,

ITEM No. 6

All that piece and parcel of property bearing **Sy.No.27/5**, measuring an extent **01 Acre 14.8 Guntas**, excluding **06 Guntas Kharab** Land, situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District and is bounded on;

East by : Road,
West by : Land in Survey No.27/1,
North by : Land in Survey No.27/3,
South by : Kada Agrahara & B.Hosahalli Village Boundary.

SCHEDULE 'C'
(Description of the Project Land)

All that piece and parcel of the immovable property being residentially converted land bearing E-PID No. 150200100100922059, (Property No. 27/1, 3, 5, 8, 28/1, 29/3) totally admeasuring to an extent of **15971.13 square meters** (equivalent to **171,911.64 square feet**), carved out of Schedule A Property i.e., lands bearing **Survey No. 27/8, Survey No. 29/3, Survey No. 28/1, Survey No. 27/1, Survey No. 27/3, and Survey No. 27/5**, all situated at Kada Agrahara Village, Sarjapura Hobli, Anekal Taluk, Bangalore Urban District.

SCHEDULE 'D'
(DESCRIPTION OF THE APARTMENT INTENDED TO BE CONVEYED)

A ' _____ ' apartment bearing No. _____ on _____ floor of Building No. _____ in the Project **"GODREJ _____"** admeasuring _____ square meters (equivalent to _____ square feet) of carpet area, _____ square meters (equivalent to _____ square feet) of exclusive area, and _____ square meters (equivalent to _____ square feet) of proportionate common area, , together with _____ (_____) covered car parking space in the basement of the Building, and proportionate undivided right, title and interest in the common areas, amenities and facilities appurtenant to the said Project.

***** *[Rest of the page is intentionally left blank]* *****

ANNEXURE 'A'
SITE PLAN

ANNEXURE 'B'
FLOOR PLAN OF THE APARTMENT

ANNEXURE C
SALE CONSIDERATION AND PAYMENT PLAN

The Sale Consideration shall be ₹ _____ /- (Rupees _____ Only)

Sr. No.	Particulars of Sale Consideration	In Rupees
(i)	Towards the Carpet Area of the Apartment.	_____
(ii)	Towards the Exclusive Areas of the Apartment.	_____
(iii)	Towards Proportionate Common Areas/Infra Charges	_____
(iii)	Towards Car Park(s).	_____

Sr. No.	Particulars of Estimated Other Charges*	In Rupees
(i)	Advance Maintenance Charges - Estimate amounts for deposit towards provisional monthly contribution towards outgoings of Association/Apex Body for 24 months.	_____
(ii)	Estimate amounts towards ad-hoc corpus fund to be deposited with Developer/ service provider, as may be directed by the Promoter	_____
(iii)	Any activities to be undertaken post registration of the Sale Deed for the Schedule 'C' Apartment such as Khata transfer, BESCOM name transfer, tax payment, etc. shall be borne by the Purchaser	
(iv)	Documentation charges, consultant fees, registration and stamp duty charges and any other incidental expenses (if any) incurred at the time of execution of the Agreement for Sale, Power of Attorney and/or Sale Deed shall be borne by the Allottee/s	
	Total:	_____

*** The 'Estimated Other Charges' stated above are compulsory in nature and is payable by the Allottee/s over and above the Sale Consideration stated hereinabove.**

Payment Plan	
On booking	5%
Within 15 days from the date of booking	5%
Within 90 days from the date of booking	10%
On Completion of Excavation for the tower	10%
On Completion of Foundation for the tower	5%
On Completion of Basement 2 floor slab for the tower	5%
On Completion of 2nd floor slab for the tower	5%
On Completion of 6th floor slab for the tower	5%
On Completion of 12th floor slab for the tower	5%
On Completion of 18th floor slab for the tower	5%
On Completion of 25th floor slab for the tower	5%
On Completion of 34th floor slab for the tower	5%
On Completion of flooring for respective units	10%
On Application of OC	10%
On Notice to Possession	10%
Total	100%

ANNEXURE D

Sl.No.	SPECS RELATED TO	APARTMENT INTERNAL SPECIFICATION		
1	Structure	G+35 floors		Aluminium - Formwork
		Parking – 3 Basements		Conventional - Formwork
2	Finishes - Flooring	Living, Dining, Kitchen, Master Bedroom, Other Bedrooms, and Passage		Vitrified tile
3	Finishes - Toilets	Master toilet	Flooring	Antiskid tiles
			Dado	Dado up to false ceiling
			Shower partition	Not Provided
			Hot & cold-water mixture in wash basin	No
		Other Toilets	Flooring	Antiskid tiles
			Dado	Dado up to false ceiling
			Shower partition	No
			Hot & cold-water mixture in wash basin	No
		General - Master & other toilets	Wash basin counters	Yes
			CP fittings — Health Faucet, Shower, Basin Mixer, Angular stop cock, Concealed flush valve, Single level concealed diverter and Spout	American Standard/ equivalent
			Sanitary wares – EWC & Wash basin	American Standard/equivalent

		Exhaust fan	Only Power point provision
		Geyser	Water & power point provision only
4	Finishes - Kitchen	Kitchen platform	Not provided
		Flooring	Vitrified tiles
		Dado	Not provided
		Modular kitchen	Not provided
		Sink	Only Provision for Plumbing lines
		Exhaust fan	Not provided
		Water purifier	Water & power point provision only
		Chimney exhaust	Power point provision only
5	Finishes - Balcony	Flooring	Anti-skid ceramic tile
		Railing	MS railing as per architect's intent
6	Finishes - Utility	Flooring	Anti-skid tiles
		Railing	Parapet wall only
7	Electrical	2 BHK	Power will be provided through HT Metering
		3 BHK	Power will be provided through HT Metering
		Ac point in Bedrooms	Power Provision only
		Ac point in Living and Dining	Power Provision only
8	Automation	Main door - Video door phone	Zunpulse or equivalent
		Main door - Smart door lock	Zunpulse or equivalent
		Switch make	(Anchor/ Schneider/ ABB/ Legrand/ Great White-Fiana Duro/ Equivalent make)
		Sprinkler in the Apartment	Yes
		Smoke detector in kitchen	No
		Intercom Facility	No

10	Doors & Windows	Main Door	Engineered wood finished with veneer
		Bedroom Door	Engineered wood finished with laminate
		Toilet Doors	Engineered wood finished with laminate
		Staircase Doors	2-hour fire rated doors/ as per NBC.
		Windows	UPVC windows with mosquito mesh provision except toilet ventilators
11	Painting	External Paint	Exterior Grade Texture Paint and Exterior grade emulsion paint
		Internal walls	Emulsion Paint, Toilet - cement paint/ white wash above false ceiling
		Ceiling	OBD Paint Note: Cement Paint/ whitewash above false ceiling areas.
		Gypsum punning	Yes - internal walls (Within apartment)
		Basement Paint	OBD paint

DISCLAIMER IN SPECIFICATIONS:

Amenities/specifications pertaining to balcony/terrace and/or utility including but not limited to flooring, fixtures, MS/SS railings, block work, etc. are applicable exclusively to apartments with balcony/terrace and/or utility. Apartments/units not designed with a specific utility area are not equipped with any amenities related to utility. Apartments/Units not designed with balcony/terrace will not have any amenities/specifications related to balcony/terrace.

Amenities/specifications pertaining to the kitchen, including but not limited to flooring, fixtures, electrical and/or plumbing lines, granite slab/platform and all other amenities/facilities/provisions specific to the kitchen and kitchen areas are applicable exclusively to apartments with kitchen.

The developer will be providing a single meter HT connection to the whole Project.

The developer/ Promoter shall only provide electrical points. The actual electrical fixtures/fitting inside the apartments including but not limited to wall/ceiling light, geyser, water purifier, chimney, exhaust fans, washing machines, buzzer/doorbell, fans shall be the responsibility of the buyer.

In the event, any document mentions a specific brand to be offered against any given specification and in the event such manufacturer of that specific brand (i) ceases production/manufacture of these brands; or (ii) ceases its business operations as a consequence of which the relevant products aren't available; or (iii) inordinately delays the supply of products/materials which, in the opinion of the Promoter, may delay completion of the Project; or (iv) causes quality changes which in -the opinion of the Promoter does not suit its quality metrics; or (V) increases the purchase cost of its products/materials by 10% or more which, in the opinion of the Promoter, may delay completion, then the Promoter shall procure and install products of any one or more of the brands as per Promoters choice, which shall be a brand with equivalent features.

In the event of any contradictions/conflicts between the Agreement for Sale and this specifications document, the provisions of the Agreement or Sale shall prevail and be final and binding.

The specifications enclosed here are to be read along with the relevant unit / apartment plan

ANNEXURE 'E' - PART I

CLUB HOUSE AMENITIES

S.No	Club House Amenities
1	Multi- Purpose Hall
2	Creche (Space provision)
3	Co working lounge
4	Gym
5	Squash
6	Badminton Court
7	Mini Theatre/AV Room
8	Hobby room/Multi Activity area
9	Indoor games
10	Hobby room/Lounge
11	Salon (Space provision)
12	Cafe (Space provision)

ANNEXURE 'E' – PART- II

Landscape Outdoor Amenities

S.No	Amenities
-------------	------------------

1	Star Gazing Deck
2	Amphitheatre
3	Informal Outdoor Seating
4	Tree House + Hammock zone
5	BBQ & Picnic Zone
6	Butterfly Garden
7	Jogging track
8	Multipurpose Court
9	Mini Golf putting
10	Paddle court
11	Skating Rink
12	Climbing wall
13	Kids play zone
14	Swimming pool
15	Outdoor Workstation
16	Outdoor Gym/Exercise area
17	Outdoor Reading Corner
18	Yoga/Meditation lawn
19	Reflexology pathway

IN WITNESS WHEREOF parties hereinabove named have set their respective hands and signed this Agreement at Bangalore in the presence of attesting witness, signing as such on the day first above written.

SIGNED AND DELIVERED by the within named Seller, through its constituted authorised signatory Mr./Mrs./Ms. _____ 	))))
SIGNED AND DELIVERED by the within named Purchaser/s _____ 	))))

SIGNED AND DELIVERED by the within named Purchaser/s: _____	))))
In the presence of : _____ _____	))

Date: